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Virginia Board of Education, Business Meeting, Friday, June 21, 2024

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- Official meeting video (VDOE, YouTube): https://www.youtube.com/watch?v=BzA-bcivMzU
- Board of Education meetings, agendas and minutes (VDOE): https://www.doe.virginia.gov/state-board-data-funding/virginia-board-of-education

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[00:11:10] Okay, good morning. It's 902 AM and I'll now call this meeting to order. I'll note that I've approved the remote participation of Ms. Ashton under the board bylaws and 2.2-3708.3 V3 of the Code of Virginia because her principal residence is more than 60 miles away from this meeting.

[00:11:31] Location, and as is customary for the board, we will begin our meeting with a moment of silence followed by the Pledge of Allegiance.

[00:11:38] okay is there a motion to approve the agenda as presented second miss ashton may not be hooked up

[00:12:29] I'll skip her for now. Ms. Kilbore, Dr. Northern, Mr. Hansen, Mr. Rotherham, Dr. Siebert, Mr. Sturdifant, Ms. Holton, and Chair Boatza. Ms. Ashton, can you hear me? We will move on.

[00:12:55] Staff has provided the members of the board with the draft minutes before the meeting. Is there a motion to approve the minutes as presented to the board? So moved. Madam President. Yeah, I'm sorry. I neglected to look in advance, but I can't find the copy of the minutes. Are they working for everybody? They're working to get it up. Oh, SharePoint is down? Yeah, it's all of our links.

[00:13:21] Ms. Kilgore, Dr. Northern, Mr. Hanson, Mr. Rotherham, Dr. Seaver, Mr. Sturdifant, Ms. Holton, and chair votes aye. Ms. Ashton. Okay. Okay. And so this morning we are excited to have a student performance by Lakeland High School. And I believe that Mr. Sturdifant is going to introduce

[00:13:53] our performers today. Okay. Madam President, I'll do it here or do you want me to do it? Okay.

[00:14:07] Good morning, Morton. I'll wait for them to come in. All right, here we go. The Cavalier Singers are students from Lakeland High School in the Center for Performing and Production Arts in

[00:14:43] Suffolk, Virginia, under the direction of Ms. Tiffany Carr. In the 2023-2024 school year, the Cavalier Singers received numerous accolades, including 13 students were selected to participate in the all district four honor treble and mixed chorus. Two students were selected as alternates for the all Virginia honor choir. Two students earned the esteem honor being selected from a pool of over 2,000 vocals auditioners for the American Choral Directors Association Southern Region honor treble and mixed choirs this past February in Louisville, Kentucky. Lakeland High

[00:15:20] School Cavalish Singer scored superior rating at the VMEA district four assessments in March and took home first place with superior rating at the Music in the Parks competition at King's Dominion on June 1st. The Cavaliers singers will be performing two pieces today for us.

[00:15:37] The first, Carry the Light by Andy Beck, featuring soloist Sanaya Walker. In Lovely Day, where you at Sanaya? Okay. In Lovely Day, arranged by Robert T. Gibson and featuring soloist Tanaya Thompson. Where's Tanaya? Great. Thank you all so much for coming and doing this

[00:16:00] for us.

[00:17:51] That's inside, that I'll know I've known I'm fine. The sad light will make the embers in our world. And the light of sin will forever walk me.

[00:18:09] take it

[00:20:23] Some light hurts my eyes, there's something with a morning love that's happy on my mind. Then I look at you, and the world's all running with me.

[00:20:45] Just one look at you, and I know it's gonna be a lovely day, a lovely day, a lovely day.

[00:21:07] seems impossible to face when someone else is there looking always seems to go on the way

[00:21:42] then i look at you and the world's all right just one look at you just one look at you

[00:21:56] and I know it seems impossible to place with someone else instead of me always seems to know

[00:22:39] the way just one look at it just one look at me just one look at me

[00:23:21] thank you all so much

[00:24:21] make it be a lovely day for us we'll be back

[00:24:59] colleagues on today's agenda

[00:28:10] two outstanding school division employees were scheduled for recognition for the rise award this is recognizing inspiring school employees award unfortunately they were unable to attend our meeting at the last minute however we'd like to take a moment to celebrate ms rainier renee weir from

clark county public schools and mr charles wolf from brocosin city public schools they have been recognized as virginia's 2024 recognizing inspiring school employees rise winners the rise award honors the dedication excellence demonstrated by classified school employees on behalf of the board i want to extend our heartfelt heartfelt

[00:28:49] congratulations to miss weir and mr wolf for their well-deserved recognition we thank you for your unwavering dedication and service to children in the commonwealth thank you very much thank you so much dr siebert and as stated in the board's board's bylaws it's the pleasure of the board to to accept public comment on all matters related to public education in Virginia.

[00:29:12] Before we begin our public comment today, I want to share a few comments about the manner in which public comment will be conducted. I ask that you model professionalism, dignity, and respect for others as you share your thoughts today. As adults, it's important that we model respectful, civil, public discourse for our students and the children who are either in attendance or viewing this live screen now or in the future.

[00:29:32] When you begin, please provide your name, and role, or affiliation. All remarks must be directed to the chair and not to any other individual. Speakers will have three minutes to share their remarks. You'll notice the timer on the screen, maybe.

[00:29:52] The timer on the screens will begin three minutes in green. At one minute, you'll see the screen turn yellow. The screen will turn red when time is up. And at that point, please close your remarks promptly. Speakers may provide comments of their, or written comments to Mr. Joe.

[00:30:07] Joe's gonna raise his hand so you can see. department's regulatory and board coordinator all comments received during public comment will be collected and provided to the board as soon as possible you may also email a copy of your remarks to mr jim chapman director of board relations and so with that our first person on our list today is scott braebrand followed by rania latif good morning president creasy dr

[00:30:46] coons and members of the board of education my name is scott braebrand i'm executive director for Bass. We offer the following six items of feedback on the performance and support framework as you move toward approving a final framework later this summer. Item one, reweight mastery index of performance. As we've shared before, we ask that you reweight the mastery index to make below basic at least a 0.50. The current index of performance proposed underweights past advanced scores and overweights below basic scores. I know you were looking at that yesterday.

[00:31:19] Item two, parent refusal should not count as a zero in the mastery index of performance. We've shared this before. Continue to assess student participation as a separate measure. Item three, readiness indicators for elementary and middle school need further development. Consider a delayed implementation.

[00:31:37] More work and development is needed on these readiness indicators. I don't even believe they were discussed yesterday. MASS recommends a delayed implementation of these indicators, especially with both new and new math and English language arts standards being implemented next year.

[00:31:55] You can still support the idea of that in the framework, but spend more time to make sure those are the right indicators for each level at elementary and middle. Item four, keep the GCI as a graduation indicator. Please keep it as a graduation indicator.

[00:32:10] Dropping it will eliminate the opportunity for our students, especially those with disabilities, to have other certified paths to graduation, such as the Applied Studies and GED. I know you're looking at extended graduation years for cohorts, but remember, many of these kids are 19 and 20.

[00:32:26] They're not going to want to stay another year or two. They have financial reasons to need to go ahead and enter the workplace or move on. Please, please keep the flexibility of the GCI. Item five, keep the English language semester guidance at 11 semesters, not three.

[00:32:43] That's consistent with best practice research about kids' ability to master academic language. And then finally, item six, VAS can support three of the four new summative categories, and we have a reasonable recommendation for the fourth category. We appreciate you listening to feedback about not including A through F or symbols of summative categories. We can support the categories of distinguished, on-track, and needs intensive support. We can't support the category of off-track. A school showing tremendous growth of its students yet still short of state proficiency is not off-track. The term off-track is off-track. Instead,

[00:33:20] VAS recommends replacing the category off-track with needs support, which is more closely aligned to the last summative category of needs intensive support. If you can't support that, at least spend more time listening to stakeholders across the commonwealth before making a decision today we look forward to continuing to partner with you on this important work thank you very much thank you

[00:33:45] miss latif is anybody sorry renia latif shelly norton robert wilson ladies and gentlemen my name is robert wilson in williamsburg virginia good morning and thank you thank you for allowing me to address you this morning the city of williamsburg is currently considering whether to separate its students from the combined Williamsburg-James City County school system

[00:34:24] and form its own independent school system. The joint school system was formed over 70 years ago and is currently ranked among the top school districts in the Commonwealth. Just about a year ago, the city manager used as a justification for seeking a feasibility study into separating from joint system, a survey that the city had done that he said supported such a move. In fact, documents produced from a four-year request revealed that this question was never asked. Instead, the single question asked respondents whether or not they wanted to look at partnerships with Colonial Williamsburg or William & Mary. The city subsequently commissioned a feasibility study that was

[00:34:59] presented in March of this year to City Council Work Session. A follow-up public forum was so well publicized that only 29 city residents showed up. The study itself included its conclusions. It was neither the intent or desire of this research and feasibility study to determine if a separation of a jointly operating school division should occur. Rather, the purposes determine potential constraints, best practices, and other considerations should the city of Williamsburg decide to form an independent school division. When I look to better understand the question, I can find nothing in the public record that critically examined the feasibility study,

[00:35:35] nor discussion by the city of the pros and cons of forming an independent school system, nor financial analysis of the consequences of such an action. As a result, I analyzed the report to perform some independent research and analysis, which I summarized in a June 1 report, which I distributed to the members of City Council, which they declined to make part of the public record.

[00:35:57] I won't detail here the many challenges and disadvantages a separate school separation would present to our students and community. Needless to say, the disruption would result in the loss of learning for all students. The study did demonstrate the value of disaggregation the data. In this case, it revealed differences in demographics and performance, but this information has generally been available on the Virginia Board of Education website, so it seems disingenuous to use it to seek to justify a separation. Finally, the fiscal implications are a mess. The city has done no financial analysis of any proposed separation that is shared with residents.

[00:36:35] In conclusion, the current joint school system is best positioned to immediately invest in targeted programs for these students who are currently underperforming and raise them up to the level of other students i understand that notwithstanding any actions the individual parties may take the virginia code requires the approval of the board virginia board of education for any separation however the matter progresses at the local level the distance between the parties grows greater in private industry we're going to bring in a mediator and lock the parties in a room until the matter is resolved i don't know about government processes but it might be something to consider Thank you for your attention.

[00:37:15] - Sherry Story, followed by Diamond Walton. - Good morning, esteemed board members of Board of Education, Madam Chair, Dr. Boone. - My name is Sherry Story.

[00:37:30] I am president and executive director of the School Board Member Alliance. I am here to endorse the new performance and school accountability system aimed at raising standards and enhancing student achievement in our public schools. This innovative framework grounded in principles transparency, heightened expectations, and ongoing enhancement provides a formal assurance that every student in Virginia will receive equal opportunities necessary to prepare for a successful future.

[00:37:58] The new system establishes rigorous standards for all students, aligning proficiency definitions with the expectations of Virginia employers, higher education institutions, and our military. By raising the bar, I firmly believe Virginia students will rise to meet these elevated expectations. The standards have been set too low for far too long, and the new system marks a crucial step towards improvement. As a former public school teacher for 22 years, I am confident that the majority of teachers will embrace the challenge of enhancing student achievement,

[00:38:34] understanding the devastating consequences of subpar academic performance. The framework prioritizes transparency for delivering clear and actionable information to stakeholders. This approach, trust, builds trust between the Virginia Department of Education and parents statewide. Parents are eager for their children to attain high levels of achievement. Parents seek creative, applicable, rigorous academic challenges for their children, and they desire recognition

[00:39:07] for genuine accomplishments in the basics of reading, writing, math, the basics, especially at the crucial grade levels K through three. Additionally, integrating the Ready for Life measure, which elevates preparedness for college, career, military service, and civic engagement, addresses critical factors for students' future success as independent, self-reliant contributors to their communities and to our nation.

[00:39:40] Accountability starts here with honest, measurable goals, effective data analysis, and the willpower to stay the course. In closing, the new performance system is a very positive step for ensuring that all Virginia students are receiving high-quality education in our public schools.

[00:40:01] By approving this system of accountability, you will be committing to a much-needed step toward a more honest representation of student learning in Virginia. Thank you for your dedicated efforts in creating something innovative. Your dedicated work demonstrates that you are unwilling to maintain the status quo, only to harvest the same results. You will be signaling to students and parents, to teachers, to school boards, and individual school board members who agree with you

[00:40:33] that virginia can do better thank you thank you diamond walton hello everyone my name is diamond walton i am a parent of a woodville elementary school student in richmond virginia and the president of the woodville pta i am writing i'm here today because in april the board presented was presented with the outcome of the review and scoring of the applications for funding for the school construction assistance program and the review committee indicated that based on the

[00:41:10] funding criteria approved by the board and outlined in the rfp a list of 27 schools scored high enough to be awarded funding including whitville elementary school which scored in the top 10 of all applicants however due to a concern raised about the geographic spread of the funding across the state there were two other options presented to the board and as you know the board ultimately selected the third option and because it would give at least one school in every district funding by the board choosing option three that means that schools and student with student populations with greater need school buildings in poor condition and projects with a higher level

[00:41:47] of readiness for initiation like woodville are receiving no construction funding whereas schools with students with less need buildings in better condition and lower readiness to initiate construction and repairs would receive funding which isn't the purpose of the grant so as the as you know the school construction assistance grant criteria were created and weighted to ensure but applications for schools with the greatest financial need building need and local commitment a scored highest and that is what was presented to the board in option one and the most close closely reflects the purpose and the criteria the board approved to award funds i understand and strongly

[00:42:22] support the desire to ensure that funding is spread across the state and i think that about the most strategic way to do and as we think about the most strategic way to do this i'd love for us to keep a couple of things in mind the first thing is to keep in mind that schools from certain parts of the state will continue to score high because there is a higher concentration of students in need and buildings in greater disrepair and even with that being the case that is not a signal to deprioritize them the other thing is to keep in mind is that there are other ways to structure the funding to facilitate a greater spread of the resources but this should be strategically built

[00:42:58] into the funding structure from the beginning ultimately my hope is that as we move away we move away from grant competitions for school construction and funding repairs from the state, but because it puts the board in a tight spot having to put these funding decisions, having to make these funding decisions, and I'm sure school districts would rather compete on sports rather than for school funding for their buildings. So I'd love to support your efforts to secure significant, broad-reaching, and consistent public school construction and repair funding.

[00:43:31] in the meantime i'm asking the board to reconsider their funding decision and advanced option number one because it would fund the most schools students with the greatest needs schools in the most disrepair and with the most community commitment thank you so much for your time and your attention thank you todd truett followed by melody clark hi my name is todd truett and i'm the parent of

two virginia public school students i'd like to speak this morning strongly in support of the proposed accountability framework with this new accountability framework virginia will

[00:44:10] finally live up to its disclosure responsibilities under the 2015 every student succeeds act to virginia students parents and communities as is well documented virginia's current combined accreditation and accountability system failed to reflect the dramatic swings in academic achievement from COVID-era learning loss.

[00:44:31] Thankfully, the new system will separate accountability from accreditation like the majority of states. Thus, this is a system of disclosure of academic performance data to everyday Virginians. The idea that Virginia parents and teachers are not sophisticated enough to understand this information or that they're ready to flee struggling schools at the drop of a hat is an insult to Virginia parents and teachers.

[00:44:57] It's also contrary to the intent of the wide bipartisan majorities in Congress who passed ESSA and President Obama who signed it. I also strongly endorse the accountability frameworks, greater weighting of achievement versus growth, which is similar to Massachusetts.

[00:45:14] Conversely, Maryland's accountability system weighs mastering growth almost equally, and Maryland's accountability system failed to reflect COVID-era academic achievement swings. As a result, Maryland is revamping its system. Lastly, I strongly endorse the middle school accelerated coursework readiness factor, which needs to take effect immediately.

[00:45:35] As a civil rights leader, Bob Moses stated, the ability to take algebra in eighth grade is a civil rights issue. And we can see from the data presented yesterday that a number of kids are not accelerating kids who are ready. Not pointed out at yesterday's meeting is that some of this deceleration is likely intentional based on ideology.

[00:45:55] The largest Virginia organization of math school leaders, the Virginia Council of Math Supervisors, fervently supported the Virginia Math Pathways Initiative's initial proposal three years ago that no kid should take algebra until ninth grade, which copied San Francisco's inequitable algebra for none program.

[00:46:13] And the same Virginia organization this past fall, in a letter to this board, opposed the pro-acceleration provisions in the 2023 Mass SOL introduction. comparing any acceleration of kids who are ready to hyper acceleration districts should not get an additional year to do what they should already should have been doing for decades next year is a pilot year for the new accountability system and it should include the civil rights issue of access

[00:46:42] to algebra in middle school thank you melody clark good morning esteemed members of the board of education colleagues and concerned stakeholders i am melody clark with the virginia institute for public policy and i'm here to support the proposed revisions to the school performance and support framework ongoing discussions and reports show that our current accountability systems must be improved we need a system that acknowledges challenges and actively works to overcome them

[00:47:20] the proposed school performance and support framework will tackle these issues head-on by steering by setting clear performance targets incentivizing best practices and providing transparent actionable data focusing on mastery and growth this framework is designed to uplift every student and close the achievement gaps growing in our state despite the clear need for a revised framework some have raised concerns regarding its implementation please allow me to address three of the most common ones

first some have expressed concerns about comparing performance across school districts implying it is inherently unfair due to differing local resources comparison

[00:48:00] is not just about school rankings it is a fundamental aspect of accountability and improvement it provides a benchmark for understanding performance and highlights best practices without comparison we cannot identify which schools and districts excel and why making it difficult to replicate successful strategies and target support where needed furthermore this approach allows us to acknowledge and address each district's unique challenges while still holding all to a standard that promotes high expectations and continual improvement second a prep a preference for an accountability model that prioritizes growth over mastery has been expressed

[00:48:37] arguing that focusing on growth better reflects student progress while growth is a crucial measure and is indeed included in the framework it must be used within a mastery-based system assessing a student's growth without considering mastery is like tracking a hike without knowing the destination suppose we only measure our progress on the trail without knowing how much further it is until we reach our final destination we might enjoy the journey but chances are high we will wonder aimlessly and never reach our intended goal mastery weighting ensures all students reach a level of proficiency that allies aligns with the demands of higher education and the workforce

[00:49:15] it sets clear targets for what students should know and be able to do providing a concrete goal for both students and educators. Growth measures in isolation provide little more than patronizing data points, and only established participation.

[00:49:31] Growth measures combined with the goal of mastery allow us to recognize the hiker's progress and make sure they are not abandoned on a journey with no clearly defined goal, the goal of college and career readiness. Finally, some have expressed concern that highlighting where schools are off track or need improvement might exacerbate existing inequalities particularly for schools in disadvantaged areas.

[00:49:53] It is not the words used to describe underperforming schools that lead to negative perceptions. It is the fact that they are underperforming. By clearly identifying performance levels, we can more effectively allocate resources, support target interventions to the schools and students who need them most and foster a culture of continuous improvement.

[00:50:12] In conclusion, we urge the board to approve the proposed performance and support framework. Thank you very much. Amy Beaumont, and then Olivia. Good morning.

[00:50:36] My name is Amy Beaumont, and I am a parent in Arlington County. I speak today in strong support of the school performance and support framework. One of the framework's key strengths is its treatment of mastery and growth, an area where the current accreditation system has struggled.

[00:50:52] Presently, accreditation uses a combined pass rate for academic achievement, which allows growth to cloak weakness in assessment scores. As a result, accreditation achievement metrics have scarcely reflected large COVID learning losses a major failure in transparency the new framework addresses these shortcomings first it separates mastery from growth allowing for more transparent differentiation between schools secondly it assigns a higher weighting to mastery than growth which will incentivize schools to close learning gaps this is particularly critical since math and writing sol pass rates

[00:51:28] are still down 15 percent relative to pre-COVID levels. Virginia is not alone in emphasizing achievement over growth. Massachusetts, which is often cited for its exemplary education policies, uses a

60 percent weighting for achievement and 20 percent rating for growth for elementary and middle schools. That is a higher ratio than what Virginia is proposing for elementary schools and the same for middle school. Of note, Massachusetts explicitly targets a three to one ratio of achievement to growth some outside groups have raised concerns that boosting the mastery metric

[00:52:04] might jeopardize a school's accreditation however the proposed regulation states the opposite noting specifically that a school's performance category shall not affect its accreditation status this occurs because virginia is bifurcating its accountability and accreditation systems with accreditation focusing on inputs and compliance and accountability focusing on student outputs lastly the framework shortens the exclusion period for recently arrived english learners in school performance metrics this is needed because under the current system an elementary school may never be held accountable for math performance of a recently arrived student

[00:52:41] who enrolls in first grade with english learners comprising a rising share of virginia's student population as problematic it is important to bring these students into school performance measures providing accommodations as needed to ensure that we can differentiate between their content knowledge and their language acquisition by doing so support can be delivered more efficiently and quickly again thank you for the significant progress that you've made with the new framework

[00:53:08] all virginia students will benefit thank you olivia followed by jeffrey brown my name is is Olivia, and I am from Norfolk, Virginia. I have been identified as both gifted and as a person with autism. I have passed out the document to you pertaining to this speech. I entered this

[00:53:45] Norfolk public school system at age four through the student support team and was extremely successful through age 12 the summer that i was 12 the city of norfolk was run by mayor kenneth alexander and the city attorney was bernard pishko the governor at that time was terry mcauliffe the state attorney general was mark herring and the state secretary of education was

[00:54:24] in Holton. Now in that summer, I was documented as having a state number and attending a school called the Educational Community Assessment Team. To the best of my knowledge, this school does not exist. There was no bus to the Educational Community Assessment Team.

[00:54:45] There were no teachers at the Educational Community Assessment Team. There was no curriculum no tests no homework no diplomas no building and no friends when i didn't show up to the educational community assessment team school there was no truancy officer to press charges against my parents and no amber alerts were issued when i went missing now what i want each and every one of you to understand is this this is not a dispute about education this is not a civil complaint this is uncivil this is it's a crime it is wire fraud it is public corruption it is

[00:55:22] racketeering it is child trafficking and it is a hate crime against me there was no due process or expulsion to place me in this school it was just school teachers under the legal council of the norfolk city attorney allocating public money to an imaginary school by exploiting my identity please look again at the document i provided that is my name with a state number and a school that does not exist you are looking at a white collar crime against a 12 year old girl with autism shame on you if you do nothing please help me with this mess or tell me who can thank you

[00:55:59] for your time i'm enclosing my contact information and my father's jeffrey brown morning madam president and members of the board my my name is jeff brown and i'm the headmaster at the

hunter school a classical christian school here in richmond classical christian schools like mine

[00:56:34] exist to help students discover what is good beautiful and true in the world in which they are growing up the journey of discovery achievement and mastery is the essence of education and that's why i stand before you in strong support of the proposed redesign virginia school performance and support network classical education has existed for thousands of years and is distinguished by its three developmental phases of education grammar phase during which students master the rudiments of academic subjects the dialectic phase or the logic phase during which students

[00:57:12] grow in their knowledge and understanding of things they have learned and the rhetoric phase during which students display their readiness to share what they know with the world is an extremely effective form of education and it has been since the days of aristotle the proposed redesign follows this time-tested form of education almost precisely focusing on what is best for every student as they navigate the world of learning while teachers administrators and school systems play a critical role this approach begins and ends with what is in the best interest

[00:57:51] of the student i applaud the efforts of the board to bring this redesign to fruition and i thank you for your time thank you now are there any other members in the audience who would like to speak during public comment okay you can line up behind the podium please and please make sure that you provide us your name and affiliation again any written comments can be handed to mr crook good morning good morning uh my name is gil bland and i am norfolk my background i am a entrepreneur for

[00:58:29] decades i'm on executive committee of the chamber of commerce i say that only to say i understand workforce issues i'm also the president of the urban league of hampton roads affiliate of the largest civil rights organization in the country in hampton roads we represent largely african american underserved citizens who are the 13th largest black population in the nation 550 000 african americans i stand to broadly support anything that improves accountability and preparing our children for higher ed and for life skills but i want to say this with a caveat

[00:59:08] my background includes being born i'm old enough to have been born in jim crow whereas legalized segregation schools were 100 black that's pretty much the case in norfolk and portsmouth today those students do not have some of the opportunities that others have just went on Wednesday of this week a child was shot. I have five children. They lost three of their fellow students to murder during their term. This past summer I took a cohort of students from

[00:59:45] Hampton High School to Houston, Texas to perform a case competition. They won first place. Why? Because they had a mock funeral of an actual child who was their classmate who had been killed only a month earlier so when we talk about accountability i think you have to put it in context of just what some of these kids experience just walking to school on a daily basis my children for example went to the most competitive and are attending the most competitive colleges in the world but that's unusual in virginia beach one of the top school systems in the

[01:00:20] commonwealth i suspect i know they have one of the highest ranked international baccalaureate programs in the country in the year that my son graduated two years ago he was the only black male in the class this year there are two black males next year three at ocean lakes the math and science one of the most prestigious uh of its kind in the commonwealth only one black male student so if we're not searching out gifted students i have real concerns of what we're doing for those who do not have those kind of resources and that kind of family so i say all this to say

[01:00:57] i've served on five college boards i've served i'm serving on three now i was the chairman of SHEV i was chairman when we invited a superintendent to join the SHEV board so i understand education fairly well but what i will say to you if you're not reaching out to the community and having discussions you're doomed to fail we did nothing in SHEV without consulting with business leaders and such across the commonwealth for all of my background i've never been talked to or spoken

[01:01:30] to or contacted by your board or your predecessors so please engage the community thank you hi there my name is catherine bruce i'm here to speak to you about the vla initiative i am here like most educators as a mother a resident of charlottesville and a student success advocate to my partner districts and the students that they serve. As part of my role here at TeachTown, I serve some of your

[01:02:06] largest school districts in the country, from the state of Hawaii, Fulton County, Georgia, San Francisco United, Dallas ISD, more than 50% of our districts here in Virginia, including your top three in Nova. At TeachTown, we are a fully comprehensive general education aligned curriculum to serve our moderate to severe students i will refer to those students as our most unique learners teach on encore is ela math science social studies and tracks a 69 increase in pre-to-post test scores with students

[01:02:45] across the nation just yesterday i met with a district in northern virginia and the director of special education said i understand and respect the urgency of the vla initiative unfortunately the current vendor list does not represent or serve students with special needs just general education aligned curriculum this director has reached out multiple times to his doe counterpart and has not heard back on the process to include a special education curriculum

[01:03:22] to meet his servants or his students with moderate to severe disabilities again some of our most unique learners i am asking for your assistance as i have also been in touch with multiple doe contacts and the vla committee at uva 2.2 miles from my house there is no transparency on the process to be approved to serve those students there is also no transparency or equity and access for those students right now we have districts in virginia with a very low retention rate for

[01:04:02] our teachers and those teachers are differentiating a general ed curriculum they're spending hours trying to meet their students where they are because the vla initiative does not again have a curriculum set to approve for our most unique learners thank you for your time i have lots of materials that i will leave here for you to review and i hope for your consideration and the consideration of some of our top districts that we can figure out a way to include these students

[01:04:33] and a curriculum to meet their needs as part of the VLA thank you madam president my name is Chris Allen I'm with middle resolution policy foundation we are a member of something called the Virginia Education Opportunity Alliance as is Virginia Institute of Public Policy that spoke before me this morning I'd like to just focus on the school performance and support framework you're

[01:05:08] considering and say for the purpose of limit or shortening my time i agree with the comments sherry's story presented to you from the school board school board members association and ms clark from the virginia institute of public policy but to put a fine point on it one of our measures is we look to parent-led transformation of the k-12 education system as measured by student achievement and so there are four things in your framework that i just want to emphasize that i

[01:05:45] would like for you to consider first is we agree there should be greater transparency in the graduation index and that completion rates are a strategic measure of your accomplishment and should be

transparent ell second ell progress should align with the federal guidelines the three semester rule and then actual achievement should be measured and aligned with work-based competency

[01:06:21] standards for 20 years i taught project management through george mason university we were aligned with the project management institute i had graduate students come and take that course as part of their graduation because they gave thought that it gave them a better measure of their alignment to the actual workspace in an academic environment and then last i think mastery should be ranked higher than growth in assessing performance so in the weights i would agree with

[01:06:57] people who have spoken before me that we should in fact do that thank you very much thank you good morning my name is carter muleen i live in norfolk virginia and my daughter olivia and my wife jacqueline have been consistent residents of norfolk since my con daughter was born over 20

[01:07:30] years ago i have provided you with two pages of a norfolk rfp for foster care placement services one Norfolk document from CAT Team 3, and one page of an IEP. On page five of the Norfolk RFP, it clearly states that the Norfolk City Foster Care Committee is the word and acronym CAT.

[01:07:53] The IEP document basically says that the child goes to CAT. Then CAT Team 3 on June 21, 2016 has a meeting, and my wife and I are in this meeting. There's no public notice, no data from that meeting no notes no indication of what this law is the only thing that was documented was my signature my wife's signature and these signatures on the document i have come to the realization that cat team 3 is almost certainly a foster care committee and my daughter

[01:08:29] went to this committee through an iep and without a due process now what i'm talking about here is an extremely serious legal problem my daughter was supposed to be under an educational system for autism and instead was in the foster care system outside of the code of virginia the norfolk city attorney is the legal counsel for everything in the city of norfolk government that includes the iep the norfolk public schools and the entire foster care system in the city he is responsible

[01:09:05] for the existence of CAT Team 3. Now, if CAT Team 3 is moving money that should have been moved in a FAPT under the Virginia Children's Services Act, then this is money laundering and wire fraud. Without a meeting notice, it's child trafficking. The IEP has nothing to do with this. The Virginia Children's Services Act, the Virginia Comprehensive Services Act, the CAT Team 3, these are all virginia creations they are not designed to work with an iep because they are legislated separately

[01:09:40] from an iep let me know what to do this violates my daughter's civil rights constitutional rights and human rights and yet nothing has been done to give her justice so i don't know if you understand this but i kind of think that if my daughter's in foster care they should like bring the cops and take her away and they can say well the parents live in a nice house the parents have jobs they make money why are you doing this well it's fraud my daughter wasn't in a foster care

[01:10:14] home but foster care money was activated through the children's services act no educational money was activated in that committee so this really looks like fraud thank you good morning my name is Tichi Pinckney Epps, and I'm here on behalf of the Virginia Educational Alliance, Opportunity

[01:10:48] Alliance. It's a new position for me. I'm the Community Engagement Director, and my focus is on parent engagement. So as much time as I will start to spend with you all here making these decisions, we'll be on the ground mobilizing parents we definitely support this new approach to public education but we'd like to add that we have rights under virginia code is it 1.24-1 240-1

[01:11:27] it is our right to exercise the our option to choose the best educational environment for our children i'll share with you that i was also a school board member in the city of richmond in 2012 to 2016 and was motivated to run for that office because the school system year after year

[01:12:00] after year after year was declining in 2004 the system volunteered for an efficiency study at that time at least all of the schools were accredited we knew then that that measure was a little problematic because then year after year after year when the schools were falling short our parents and our children and our teachers were being beat over the head you can't learn

[01:12:38] you don't know how to teach so i just want to say we stand in support but please recognize our right to choose the best educational environment for our children thank you are there any other members in the audience today would like to speak in public comment okay seeing none we will close public comment and move to the consent agenda item a first and final review

[01:13:17] to certify list of qualified persons for the office of division superintendent of schools

[01:13:22] Do I have a motion? Second. Okay. Ms. Ashton? Aye. Ms. Kilgore? Aye. Dr. Northern? Aye. Mr. Hanson? Mr. Rotherham? Aye. Dr. Siebert? Aye. Ms. Holton? Aye. Mr. Sturdifant? Aye. And Chair votes off. Okay. Now we are moving to item B, first and final review of College Partnership Laboratory Transfiscal Agent and Partnerships.

[01:14:01] As we turn to item B, first and final review of college laboratory school partnerships, fiscal agent and partnership applications. We've received and considered all five fiscal agent and partnership applications that were submitted. Sorry, I want to make sure Ms. Ashton can hear, so I'll wait till the doors close.

[01:14:23] start over. Did you hear any of that, Ms. Ashton? Okay, so we've received and considered all five fiscal agent and partner applications submitted by the impacted lab schools. I am impressed by the expedient work and call to action these schools undertook in such a short period of time.

[01:14:50] As we saw in their initial applications, they are committed to creating high-wage, high-demand career opportunities to more than 1,000 children across the Commonwealth. Is there a motion to APPROVE THE PROPOSED FISCAL AGENT AND PARTNER APPLICATION I MOVE THAT THE BOARD OF EDUCATION APPROVE THE APPLICATION OF OLD DOMINION UNIVERSITY TO SERVE AS THE FISCAL AGENT AND PARTNER OF THE FUTURE EDUCATORS ACADEMY AND THE DEPARTMENT OF EDUCATION REQUIRED JAMAINA COMMUNITY COLLEGE TO RESUMBIT ITS COLLEGE PARTNERSHIP LABORATORY SCHOOL CONTRACT FOR AMENDMENT AND THAT THE PRESIDENT

[01:15:27] OF THE BOARD AND THE SUPERINTENDENT OF PUBLIC CONSTRUCTION BE AUTHORIZED TO NEGOTIATE AND execute an amendment to the future educators academy contract consistent with this action now all right so any discussion on this item uh madam president ms holton are we uh some of these documents have just recently been loaded up and i'm skimming through them but just for transparency

[01:16:01] purposes does anything in the fiscal agency applications or otherwise before us on later agenda items outline the financial uh uh share going to ODU as part of this work or is that otherwise documented this is just their partnership okay document so we'll see we'll see the fiscal agency fiscal information when we come to a later agenda item correct thank you any other questions

[01:16:36] Discussion? Ms. Ashton? Aye. Ms. Kilgore? Aye. Dr. Northern? Mr. Hanson? Aye. Mr. Rotherham? Aye. Dr. Sievert? Aye. Mr. Sturdifin? Aye. Ms. Holton? Aye. And chair votes aye. Okay. Item C. Okay, so I guess we have to do all of them individually. So, Mr. Hanson, I'll let you go ahead with that.

[01:17:14] I move that the Board of Education approve the application of Old Dominion University to serve as the fiscal agent and partner of the MG Tech Lab School, and that the Department of Education require Mountain Gateway Community College to resubmit its college partnership laboratory school contract for amendment, and that the president of the board and the superintendent of public instruction be authorized to negotiate and execute an amendment to the MG Tech Lab School contract consistent with this action.

[01:17:42] Chair Second? Second. Any discussion on this item? Ms. Ashton? Aye. Ms. Kilgore? Aye. Dr. Northern? Mr. Hanson? Aye. Mr. Rotherham? Aye. Dr. Siebert? Aye. Mr. Sturdifant? Aye. Ms. Holton? Aye. And Chair Votes? Aye. Okay. Mr. Hanson? I move that the Board of Education approve the application of Old Dominion University to serve as a fiscal agent and partner of the Isle Maritime Trades Academy and that the Department of Education require Paul D.

[01:18:27] camp community college to resubmit its college partnership laboratory school contract for amendment and the president of the board and the superintendent of public instruction be authorized to negotiate and execute an amendment to the isle of maritime trades academy contract consistent with this action second is there any discussion on this item miss ashton hi miss kilgore hi dr

[01:18:56] northern mr hanson mr rotherham dr siebert mr sturdifant miss holton and chair votes up okay mr hates i move that the board of education approve the application of old dominion university to serve as a fiscal agent and partner of the explorer at rc lab school and that the department of education require roanoke college to resubmit its college partnership laboratory school contract for amendment and that the president of the board and the superintendent of public instruction be

[01:19:29] authorized to negotiate and execute an amendment to the explorer at rc lab school contract consistent with this action second any discussion on this side miss ashton aye miss kilgore ah dr northern mr hansen all right mr rotherham aye dr sievert aye mr sturdifant aye miss holton aye and chair but Mr. Hanson. I move that the Board of Education approve the application of Old Dominion University

[01:20:07] to serve as a fiscal agent and partner of the Southwest Virginia Hills Lab School and that the Department of Education require Emory and Henry College to resubmit its college partnership laboratory school contract for amendment and that the President of the Board and the Superintendent of Public Instruction be authorized to negotiate and execute an amendment to the Southwest Virginia hills lab school contract consistent with this action exactly any discussion on this item

[01:20:35] miss ashton miss kilgore ah dr northern mr hansen mr rotherham dr siebert mr sturdifan miss holton hi and chair votes i okay so that moves us to item c now okay this is first and final review of college partnership laboratory application from Old Dominion University, the Aerospace Academy of the Eastern Shore.

[01:21:10] This application was submitted on May 29th, 2024 and reviewed by the Laboratory School Standing Committee on June 10th. The Standing Committee unanimously recommended the lab school for first and final approval to the board. This lab school is determined to extend access to the knowledge,

skills, and abilities needed to be successful in the aerospace and adjacent industries identified as priorities by go virginia region five economic development authority with the understanding that

[01:21:43] final decisions related to lab school monies will be forthcoming in item d is there a motion to waive first review and approve the laboratory school application from ultimate university aerospace academy of the eastern shore for five years with annual reviews and to delegate to the president and superintendent final negotiation and execution of the lab school contract second second any

[01:22:10] discussion on this item miss ashton oh miss kilgord ah dr north mr hanson hi mr rotherham hi dr siebert hi mr sturdifant hi miss holton hi and chair votes off okay moving to item d so we are now talking about our college partnership laboratory school final funding decisions as

[01:22:45] As stated in our May board meeting at the most recent June college partnership laboratory school standing committee meeting the board is to determine funding allocations for all approved lab school applications, so that would be. Old Dominion stem academy so that would be our first one remember that we had this on our May agenda, and we have passed on the funding decisions to this month remember.

[01:23:13] just want to make sure that we are all on the same page here so as you all will recall this lab school is designed collaboratively with local school divisions to incorporate hands-on stem experiences into the elementary curriculum and some of the industry and community partners include commonwealth cyber initiative hampton roads workforce council the virginia space grant consortium hampton roads biomedical research consortium and many more i'm extremely excited for this lab school to flourish and extend opportunities for high skill high demand wage

[01:23:46] jobs in the stem industry for our next generation mr hanson i moved to award startup funds and up to 3.36 million dollars and for people funding from the college partnership laboratory school fund in accordance with the board's guidelines and to delegate to the president and the superintendent final negotiation and execution of the old dominion university stem academy at booker t washington elementary school lab school contract second is there any discussion on the side so uh miss holton madam president i'm hoping at some point and i would love to have it before

[01:24:25] we vote on any of these allegations allocations just a brief presentation of the amounts for each school and any adjustments to the amounts for the schools that we've previously addressed in light of the fiscal agency status and you know just get us i i had thought we were going to have a document that adds us up to 75 million uh we we can't i don't think we can vote on any individuals without knowing what the total is so that we don't go over the 75 million allocated so uh help me help me i i had assumed we were going to have a presentation or that there was a miss i

[01:25:05] i thought i had understood there was going to be a document provided with some numbers and a total so today in motion d um the award presented is 3.36 million gmu frederick the motion will be 1.8 million odu eastern shore the motion will be 3 million for a total of 8 million 16 000 and that will be the remainder of the 75 million in the lab school fund excuse me and are there no adjustments

[01:25:42] to any of the other numbers because we had talked about whether we would need to adjust other applicants uh based on the fiscal agency status are you talking about the indirect cost component for odu yes i'm talking about the five schools that are amending their applications are they all coming in at the

same numbers that had been previously approved or are we adding to those totals to accommodate the fiscal agency charge would be the startup funds so in other words the

[01:26:19] totals that we have previously approved for those other institutions are not changing remember that in all of our previous motions we included startup funds and the additional um planning of additional what is it for people funding piece this is this is similar so that's that is actually what's going to happen with odu we will give that startup fund money too so i'm sorry i still don't understand so we approved an amount of startup and an operations amount for all of those five previous schools

[01:26:54] mr the the odu uh interim provost told us yesterday that their fiscal agency funds we're going to come from the operating the annual operating funds i think is what he said but we've still not had anything presented to us on that whether it's coming from startup funds or the annual operating funds i just want to understand does it come within the existing total remember last month we saw 10.6 right do you remember that was the leftover amount that we saw

[01:27:30] at the end of that balance that was what mr dr armstrong presented to us do you remember that i i can't it was validate the number no because i fly yeah well i would love to see those numbers in writing somewhere today but regardless are we are we increasing the total amount being allocated to mountain gateway for instance so as to help mountain gateway accommodate paying a fee to old dominion and if so by how what is that fee that's going to old dominion on the mountain gateway

[01:28:07] application and it are we increasing our allocation to mountain gateway our total allocation to out to accommodate that or is mountain gateway absorbing it as we've said we are negotiating the contracts through the famp applications to add in up to five percent of indirect costs so that would be up to 5 on top of the total of 10.6 million 10.6 million what is is like so what's what was the

[01:28:40] mountain gateway allocation for example so so the 10.6 million you're referring to dr coons is that the amount of excess funds we had what what is the 10.6 million i don't think we had excess funds we had remaining funds and i was not remaining so is that what the 10.6 million is remaining 10.6 million of remaining lab school funds. We are presenting through item D the expenses of $8,016,000,

[01:29:14] which is the $3.36 for ODU Suffolk, the $1.8 million from our GMU Frederick, and $3 million for ODU Eastern Shore. So then what's remaining after today's $8 million, if we allocate $8 million into these three is 10.6 minus three, which is?

[01:29:40] - It's 10.6 minus eight, so it's about 2.5. - I'm sorry, 10.6 minus eight, which is 2.6. So now is that 2.6 going to be used, those 2.6 remaining funds going to be used to increase the Mountain Gateway allocation and the other five that are now partnering with ODU to cover that fiscal agency fee to ODU?

[01:30:12] Is that what's happening here? - Yes. - Okay, and that will be the amount that will go to ODU on those five applications will be 5% of the total previously allocated to each of those?

[01:30:29] - We are still in contract negotiations. You just approved the application and the final contract negotiations for us to do with them. I can't speak to the final contract negotiations, because those have not happened at this point. So it will, are we approving, are we going to vote to out?

[01:30:49] So we're going to vote to allocate up to 5% additional for each of those five colleges, up to 5% additional, so as to accommodate the fiscal agency fee. Are we going to vote on that at some point, or how is that getting authorized?

[01:31:06] Ms. Love, would you like to jump in here? please. I'm not involved in the negotiations, but I have heard of, you know, and worked on the contract amendment and that sort of thing. So just to sort of reset, right, when the fund was created, the General Assembly assigned the monies into three different buckets. The planning grants were long past that. We're not talking about that. The startup funds and the per pupil operating costs are

[01:31:39] two buckets that really are in play right now so with respect to the to the odu and george mason applications that were approved at the last meeting but no funding awarded what is being proposed for you today is to award startup monies and per pupil operating funds for those two same thing goes for the new odu eastern shore lab school the award of startup money and per pupil operating funds now let's turn to the fiscal agent and partner applications that you all have

[01:32:19] approved so od is going to has agreed to perform this obligation for each of the lab schools that requires a fiscal agent and partner the what's been under discussion and these other people can speak more substantively this but i just want to sort of lay out the framework for you Is that of the per pupil operating funds that have been already awarded to those five schools, and in amounts that I can't tell you off the top of my head, but we can find them if you need to go.

[01:32:49] The idea is that ODU as fiscal agent and partner will receive 5% of those, up to 5% of those already awarded funds, so there's no additional dollars that are going into that. It's my understanding that this has been discussed with each of those applicants, so the three community colleges and the two privates, as well as ODU.

[01:33:15] It's my understanding that everybody's good with that. Somebody please correct me if I've misstated that. One thing, though, that you need to remember is those indirect costs, that up to 5%, the per pupil funding, doesn't kick in until the per pupil funding begins to be awarded, which doesn't take place until the lab school is starting.

[01:33:38] I don't remember the start dates. I think there might be one or two of the lab schools starting as early as this fall. The others, I think, next year. So there's still a lot of work to be done for which those lab schools have received startup funds. well now we're bringing this new partner into this equation which is also going to have some startup activities some significant startup activities as you've heard and for which we need to provide some additional funding to ODU for that now in the Appropriations Act the General Assembly has

[01:34:13] provided different sorts of guidance about how those dollars need to be directed so when it comes to the startup monies the appropriation act specifies that those funds need to go to the establishing institution of higher education so in the case of those five that's monies to go to the community colleges and the two private institutions right but you've already awarded those lab schools it's their own uh their own startup monies what will be offered before you

[01:34:50] today is taking some additional monies that are additional startup funds and there's still money left to do this and stay under the 20 million dollar cap take some some of those startup monies award them to the establishing the lab school for the sole purpose of compensating odu for the work it's going to be undertaking between the signing of the contract and the startup of the school and the award of the ongoing operating for people funding is that sort of does that help

[01:35:30] make it clearer miss holton yes thank you that helps a lot but i'm still missing i hear you saying we're going to be asked to allocate startup that there are remaining i hear you telling us that there are remaining funds in the 20 million startup yes portion of the overall 75 million and that we are going to be asked to allocate some portion of that to ODU to cover their startup costs. I don't see any resolution. I don't see anything in any of our agenda items. Is there

[01:36:08] anything we're going to be asked to vote on and how much is that amount? What is left in the 20 million allocation and how much of that are we going to be asked to allocate to ODU and how are we being asked to do that? I just don't see anything we're being asked to vote on.

[01:36:26] right so i can understand that there's if i might mad president um i think of the 20 million dollars let me see if i've got that figured madam president i'm not trying to be obstructionist here i'm just trying to get us to a conclusion that's within our legal parameters and we're i wonder if this agenda item should be put off until later in the day and and let us get dr armstrong up here and i mean we we just we don't have the documentation in front of us there's

[01:37:02] something missing the danger of putting off the vote until after the 30th june is that oh i didn't say until i understand we got to do it today i said later in the day i apologize this just we i i thought dr coons when you and i spoke earlier this week i thought you under told me we were going to have some documentation to supplement this agenda item and it's just mia mr hanson i i would suggest that i think the cadence and flow of getting these next three approved that we approved at the last meeting last meeting dr armstrong did have a slide up

[01:37:37] showing the 10.6 million getting these three approved with um uh george mason the new od un and i think the one we just approved for the booker t washington one um amounts to eight a little over eight million dollars so the 10.6 that leaves two and a half million dollars left over and i'm happy and prepared to make a motion after we get these other two approved

[01:38:10] to give the discretion and i can more thoughtfully write this out to the president and to the secretary to make sure that these five schools that have been incredibly disruptive disrupted and odu stepping in to help make these effective be given the ability to manage that full of money that is left over so we're just gonna is the determination of the amount simply whatever is left over that must be the right amount or is there some rationale for the amount again i think

[01:38:48] in the contract negotiations we should delegate that to the superintendent and to the president of the board to determine what is needed at this point so again i mean is the amount that's left over respect we're dealing with a lot of change that was thrust upon everybody everybody's trying to do their best to accommodate this with again a ridiculous deadline of june 30th and i think it is incumbent upon us to give the discretion and to the president of the board duly appointed our

[01:39:24] secretary of education to figure out what is going to be best to make sure that we get the best outcomes and the effective implementation of these grants in these contracts i i would just submit that it is this board's responsibility to make a responsible allocation of the funds i understand i understand your uh position on the timing i would submit that you know these schools were on notice a long time out of order here so you need to ask to be uh to be heard i apologize dr

[01:39:56] Dr. Siebert. I was tracking our council's explanation and I was following that. Thank you and you went to get some numbers so so so it's so of the $20 million that the General Assembly allocated for

startup funds before today, some $13 million has been awarded to the lab schools that the board has approved to date.

[01:40:24] Typically, under the board's guidelines, typically startup funds are awarded in the amount of a million dollars, although the board's guidelines contemplate that there could be additional funds awarded, and the board has awarded in a couple of cases additional startup funds above the $1 million.

[01:40:43] dollars so there's capacity of roughly um what is it 13 million out of 20 so some six six to seven million dollars remains you have before you today three applications the the odu suffolk odu eastern shore and george mason shenandoah that are each asking for a million dollars in startup funds so that takes us up to 16 more or less so there's between three and four million dollars

[01:41:16] remaining of that 20 million dollars earmarked for startup funds that um i think as i understand the proposal would be to have the board allocate um portions of that for each of these five lab schools for which odu will serve as a fiscal agent and partner the amounts the motion that i think you're going to hear is is is not going to suggest cookie cutter approach for that right a lab school that's opening this fall versus one that's opening a year from fall you know have different needs for

[01:41:53] startup support right so that's where some of the um final negotiations as i understand it can help um focus and help the parties arrive at the appropriate number for a particular lab school you know od if odu is supporting a lab school that's um 20 miles down the road versus one that's 220 miles down the road right the travel it costs are going to be different you know for example

[01:42:27] so i think the ask of you uh this morning will not be for specific amounts for each of those schools but an up to amount uh leaving then up to the the parties including the president of the board and the superintendent the authority to negotiate the final amount which correct me if i'm wrong miss love but that has been the the consistent motion yes since we started approving lab schools so when we started approving lab schools however many months ago we did the motion always said to

[01:43:06] award startup funds and up to x so there's never been a question about the startup funds up till today right so this is a little different right this is i think this is the first ask first time someone's come for a second shot at startup funds but under the circumstances where you bring odu odu and as a fiscal agent and partner as i understand the thinking is that there will be some expenses that occur that that odu will incur that should be compensated and that the lab school

[01:43:42] i mean all cases they've already been awarded startup funds they've already started expending them um so uh you know someone can speak to sort of the policy call on this but i can see that i can imagine that some people's way of thinking it's not really fair to dig into the startup funds um that have already been awarded to a lab school so that's why we're going back the proposal is to go back to the bucket that has capacity and award up to i don't know what the motion is going to say um maybe i'll say half a million just to throw a number out there up to half a million dollars in start up funds for each of these schools knowing that the precise amounts will be negotiated

[01:44:22] and tailored to the particular circumstance mr rotherham did you have a comment yeah that's just i think clare had a question so essentially the choice on the table for us is that we somehow try to determine what these allocations should be and as you're to your point this is these are high variants the schools are in different places and different kinds of schools or we do basically what we've done in the past which is allow the state superintendent and the president of the board to negotiate a contract on our on

our behalf and this is not unlimited because there's a limited amount of money and so they're going to they're going to work with that and address this issue

[01:44:59] because odu has heroically stepped up here and just to make sure that we're that we're taking care of that is that that that was a question right so tell me tell me what i just said that's not correct i don't know that there's a you're the board you're the client's always right um yeah as i understand it'll be an award uh the motion will be to award up to um and and i you can tell the staff um that i can i mean i think the part of the idea is that there's there's money in there to be used it's not that we're trying to spend it all needlessly but um to the extent that

[01:45:36] there is need appropriate need we want to be able to expend all that we've got available but that's where the negotiation will come in and i know the i know the agency and the universities have been talking already so i just don't know how far those particular negotiations have taken taken everybody madam mr sturdon are we standing with the motion in the second that we have on the floor that's correct i'll call for the vote okay consultant just by way of i i'm

[01:46:12] not ready to vote yet because i don't understand i do understand what these motions are but i don't understand how the total adds up and i do completely agree with the concept of giving the superintendent authority to negotiate the contracts as we have in the past but if we are going to allocate additional monies to those five schools then i think we need to have a motion and a vote on those five and i think the number we ought to set a cap an up to cap as we have for the others and the cap ought not to be simply whatever money's left in the pot

[01:46:50] but something in relationship to the uh the the work and i would propose i mean one one way to look at it would be five percent of the startup funds because odu is getting five percent already i understand of the operating funds that are already allocated but they're not getting any startup money so maybe they should get five percent of five million which comes out to 250 000 which may well be enough or maybe it should be more or less but there ought to be a motion and there ought to be a number and we ought to have evidence that it all adds up within the totals

[01:47:27] that the general assembly has given us if i can get that information then i can vote on these otherwise i i'm not in a position to vote favorably until we understand those i'm i'm confused so what information do you want specifically because i don't i'm trying to figure out the situation we're gonna up here freestyle how much these allocations should be this is i'm not asking that we freestyle like so what i'm curious like what is what is the numbers you want that we don't have i want to i want dr armstrong or mr dickey to come up here and give us a chart listing all the sums allocated the sums left in the startup funds and how much

[01:48:06] we are being asked to allocate as a cap for odu and its fiscal agent role what is the cap that we're authorizing the sec the superintendent to negotiate up to and some arithmetic showing that that that is within the statutory budget allocation.

[01:48:26] - Mr. Sherford. - Madam President, I think it's been properly explained to this board. Ms. Holton has her idea as to what she wants, but for a second time, I've called for both. - Thank you.

[01:48:42] This is a similar motion to every other motion we've made on any lab school. This was a motion that we could have made in last month's meeting, and we chose to put off the funding decision. So I'm going to remind the board that the motion that has been made and duly seconded is to award startup

funds and up to $3.36 million in per pupil funding from the College Partnership Laboratory School Fund in accordance with the board's guidelines and to delegate to the president and to the superintendent final negotiation and execution of the Old Dominion University STEM Academy at Booker T. Washington Elementary School Lab School contract.

[01:49:21] Ms. Ashton. I'm sorry. Aye. Did you have a Dr. Siebert? Was there a question? No. Matter of fact, I was going to suggest that we hold this. We have these numbers. Hold this in advance. Just take a quick break, get these numbers, and then vote.

[01:49:38] We'll start with a little call at this time. Yeah. So Ms. Ashton said aye. Yes. Ms. Kilgore. Aye. Dr. Northern. Mr. Hanson. Aye.

[01:49:53] Mr. Rotherham. Aye. Dr. Siebert. Aye. Mr. Sturdifant. Aye. my objections to the motion that i think will be separately coming as to funds with respect to the fiscal agency and as to this motion i can vote up and chair votes aye okay um let's see and so then we have um the george mason lab school so george mason university's shenadoa valley regional college

[01:50:28] partnership laboratory school for data science and computing and applications is an exciting lab school that focuses on students in rural communities and has an emphasis on advancing data science, computing, and applications throughout the Shenandoah Valley and the Commonwealth for students and teachers. Some of the industry and community partners include Amazon, the Virginia Mathematics and Science Coalition, Amazon, Smithsonian, and NASA. This lab school is primed to offer students in rural communities access to lucrative certificates and course pathways

[01:51:04] in data science the program is also looking at ways to train teachers and establish best practices for teachers in training wanting to teach data science i'm eager to see the increased access to these high-wage careers in science that this program is going to offer for our students i moved to award startup fund and up to 1.8 million dollars in per pupil funding from the college partnership laboratory school fund in accordance with the board's guidelines and to delegate to the president and to the superintendent final negotiation and execution of the george mason

[01:51:38] university data science computing and applications lab school contract second any discussion on this item miss ashton hi miss kilgord ah dr northern mr hanson hi mr rotherham hi dr sievert mr sturdifant hi miss holton i were accused because of my employment with george mason and chair vitsa

[01:52:13] okay um i would ask that we take about a 10 minute break please so that the board can use the

[01:52:22] facilities thank you i'm back to border so we are moving to um odu's aerospace academy lab school

[02:11:15] that we just approved earlier the aerospace academy lab school is determined to extend access to the knowledge skills and abilities needed to be successful in aerospace and adjacent industries as the priorities defined by go region five go virginia region five economic development authority some of the industry and community partners include nasa wallace white facility the virginia space flight academy the hampton roads workforce council and the virginia space support authority as well as the virginia space grant consortium as you all saw yesterday there

[02:11:52] is a letter of support offered by firefly noting that they stand as a member of the industry and believe that this proposal will effectively foster great interest in within the stem community in the eastern

shore and inspire the next generation of aerospace leaders i can't wait to see this highly technical and very exciting opportunity for the eastern shore and uh this is as as we saw yesterday so exciting um for that area of the commonwealth as well as the entire commonwealth and it's in this opportunity here mr hansen i moved to award startup funds and up to three

[02:12:30] million dollars and for people funding from the college partnership laboratory school fund in accordance with the board's guidelines and to delegate to the president and the superintendent final negotiation and execution of the old dominion university aerospace academy of the eastern shore lab school contract second any discussion on this item found president mr

[02:12:55] Now that we're moving with the second part of this, just to note I think this lab school, it's been exciting watching it come together, and this just shows just the tremendous diversity both geographically and in terms of emphasis and subject matter around the Commonwealth.

[02:13:10] We have rural schools doing coding, urban schools doing coding. We have a school and a part of the state that's not always been well served that's going to do aerospace. There's obviously health professions, everything else. And so just before we go down this one, I wanted just to note that I think it's not just because we all like to watch rockets go up.

[02:13:25] It's just exceptionally, it's just exceptionally exciting. It shows what's possible here. Ms. Holton? Just to clarify, Mr. Hanson, I may not have heard you, but it's $3 million total for startup and operating.

[02:13:41] Identical to all of the other ones we've read. And that's the right, have the right number. Startup funds and up to $3 million. So I'm sorry, is it $3 million including startup and the per-pupil funding, or is it? The startup funds and up to $3 million in per-pupil funding.

[02:14:01] So it's a million of startup plus up to $3 million in per-pupil funding. So it's $4 million total. Okay, thank you. So that means that, just to be clear, the three we're approving today actually add up to $9 million.

[02:14:17] I thought I had heard $8 million, but including the startup funds, it's $9 million. Is that right? But I would maybe recommend along those lines is we're working on the budget numbers of the staff right now, and so maybe deferred all of the numbers until $9 million.

[02:14:36] Well, I just need to know what we're voting on up to $4 million total for this school. That's right. Okay. All right. Any other comments or questions? And I guess you're satisfied, Mr. Hanson, there's going to be sufficient funds left over. i mean really my interest here is making sure that odu in their fiscal agent role is sufficiently not excessively but sufficiently rewarded and you're satisfied that with these allocations there's sufficient funds left that we're going to hear from staff on that soon but that there's sufficient

[02:15:09] funds left to meet the needs for odu's fiscal agency responsibilities all right thank you

[02:15:18] Ms. Ashton? Hi. Ms. Kilgore? Hi. Dr. Northern? Hi. Mr. Hanson? Hi. Mr. Rotherham? Hi. Dr. Siebert? Hi. Mr. Sturdifant? Hi. Ms. Holton? Hi. And Chair Bitts? Hi. Regarding any remaining monies, we're going to defer on that discussion to have staff present to us. And additionally, we need to get Mr. Dickey up here to do his item so that he can be excused for personal reasons.

[02:15:57] So, Mr. Dickey, you want to hop up here and do item G for us, please? Good morning. So, everyone, item G, please. Yes, thank you for your flexibility this morning. Yes, sir, thank you. Good morning, President Creasy, members of the board, Dr. Coons.

[02:16:14] This is final review of your recommendations on establishing standards for school facilities pursuant to Senate Bill 1124. of course you accepted for first review the recommendations document at the april meeting since then we've continued to review the document for clarifications for additional input from reviewers really three three main substantive changes in the final review version that's before

[02:16:48] you in attachment one some clarifying language on several of the industry technical terms that are in the operations and maintenance section of the document related to additional narrative on the nature of calculations and metrics that are recommended school divisions maintain and analyze on a recurring basis and those those are the current replacement value and the uh facilities condition index to two very um widespread industry metrics for managing uh

[02:17:26] capital buildings that that are recommended school divisions uh periodically um calculate and analyze as part of their capital planning and then um a recommendation and further explanation on school divisions creating an annual maintenance and operation reserve fund for the purpose of not ongoing routine maintenance and operations in maintenance in their operating budget but with an emphasis towards capital maintenance major replacement repair of facilities over their

[02:18:06] lifespan that was really the um major discussion in the work group meetings among the stakeholders uh that there there are um uh planning gaps and resource gaps in that area in many school divisions uh and um an annual uh maintenance and operation reserve fund for the major repair uh replacement renewal of buildings would would be would be a strong recommendation again is seen in the document

[02:18:41] that's at local option and then stemming off of that recommendation is required in senate bill 1124 requiring the board to recommend an annual percentage of current replacement value and The current replacement value of school facilities is the current cost and current dollars to duplicate school facilities.

[02:19:09] But benchmarked against that dollar value, the Senate Bill 1124 requires the board to make a recommendation on the percentage school divisions would budget against their current replacement value as a budgetary vehicle locally to ensure a reserve of funds for major capital maintenance and replacement of systems to facilitate longevity of school facilities. That recommendation is 2% based on industry metrics

[02:19:48] and industry recommendations from government, private sector, and also um uh various uh work group members uh that um inform the uh work group on on that recommendation um so that that key uh final recommendation uh again of of funding on an ongoing basis uh two percent of current replacement value uh the focus again would not be on routine uh repair

[02:20:23] and maintenance uh that that should be covered in school divisions operating budget uh but a long-term multi-year reserve fund uh that would support uh over the lifespan of buildings replacement of major systems and components to maximize longevity of those of the buildings particularly in light of increased state investment in school facilities in virginia so that that's the primary uh uh substantive changes from the first review um uh version of

[02:21:01] the document um one one very minor clarifying uh uh change that could be made in the uh final summary is uh the insertion of capital maintenance uh just to reinforce uh the um the intent of that

two percent recommendation that it's um on on major uh uh reserve uh uh that's uh for uh major uh capital maintenance of buildings and not uh routine maintenance which should be covered in the annual

[02:21:36] school operating budget uh be beyond the uh board's approval um of the record final recommendations and attachment one uh the department will move forward as required in senate bill 1124 to deliver the recommendations to the education committees in the general assembly by july 1 and the superintendent of public instruction recommends the board approve the final recommendations uh in attachment one thank you president creason thank you is there a motion to approve the

[02:22:14] recommendations for standards on school facilities planning and design construction and renovation and maintenance and operations pursuant to senate bill 1124 so second any discussion on this item man president question dr siebert um so he gave you a really presentation at the previous meeting and all this um and thank you for clarifying the capital maintenance piece and that that's all really good refresh my memory of the earlier presentation at what interval is the replacement

[02:22:50] cost piece get updated to kind of capture inflation um what what how does that what interviews get updated yeah i mean the mechanism to you know locally to create um a capital maintenance reserve you know ongoing you know you know replenishing and contributing to that that type of reserve fund again the recommendation being being being at local option um but benchmark at a you know industry metric two percent it it's against the current replacement value which does build in inflationary cost i mean that and that's a key metric that will take local effort in support

[02:23:28] of school divisions to uh you know maintain that data um generally just as a capital planning you know tool but also if uh you know they school division would formally you know institute a capital maintenance type fund which some school divisions and localities do but that current replacement value if you if you look at the form of the definition that that by and large should capture the very latest inflation adjusted cost per square foot to duplicate a school facility

[02:24:02] with then the two percent recommended percentage against that as the budgetary vehicle to establish a capital maintenance fund and that two percent is is in part of um industry recommendation on the estimate the the rate at which school facilities deteriorate or or erode from from use and age thanks to you vj and your team any other questions comments okay miss ashton hi

[02:24:40] Ms. Kilgore? Hi. Dr. Northern? Hi. Mr. Hanson? Mr. Rotherham? Hi. Dr. Siebert? Hi. Mr. Sturdifant? Hi. Ms. Holton? Hi. And chair votes aye. Okay, we have to thank you so much. Thanks very much. Appreciate it. Absolutely. We are going to return to item E, please. Thank you. Good morning. Good morning.

[02:25:10] This item is the final review for the 2024 Computer Science Standards of Learning. The overall goal of these standards is to provide students with a robust computer science learning experience that consists of fundamental computer science concepts and skills valuable for everyday life, while concurrently offering avenues for deeper exploration to support their post-secondary aspirations.

[02:25:36] These standards represent standards in grades K through 8, and then four standalone elective courses. Prior to the first review by the board, in May 2023, roundtable sessions were conducted to garner input to inform the review and revision process.

[02:25:56] Throughout that process, stakeholders have provided feedback, most notably through the work of the Computer Science Advisory Board and educator stakeholder engagement sessions. In April of 2024,

the board received the proposed 2024 computer science standards of learning for first review.

[02:26:15] And then from April 25th through May 31st, feedback was provided through written public comment and seven public hearings held across the Commonwealth. The final version that you all have today reflects the edits made by VDOE based on the feedback and public comments.

[02:26:31] The public comments were received through in-person and virtual public hearings, and then online options through an online form and in the receipt of emails. During the public hearing established timeframe, feedback was received from educators across Virginia, those that are classroom teachers, and then division level leaders in computer science, and then members of institutions of higher education, the Virtual Learning Advisory Council, and community members.

[02:27:04] You'll see here some examples of feedback received, but in general, the feedback was very positive about the standards or very generally focused across K-12, and then some particularly were about elementary implementation.

[02:27:22] So we heard that the standards really established a very clear, coherent set of standards that define the common expectations of proficiency for all students, and that revisions provided a comprehensive learning experience for computer science that wasn't just focused on programming like prior.

[02:27:41] We also heard that educators will need support in understanding and implementing the revised standards, and that they should include the impacts of screen time on health and wellness.

[02:27:50] The themes from the feedback resulted in some changes to the revisions you see here. So screen time standards were added in all grading content areas. There were also technical edits for grammatical errors and typos and word choices to improve clarity. And then a revision to machine learning in fourth grade for improved alignment for the subsequent machine learning related standards.

[02:28:24] Moving into next year, VDA, we will be working with computer science teachers and leaders to develop instructional guides and other instructional resources for teachers in addition to providing professional learning for divisions throughout the school year prior to implementation in 2025-2026.

[02:28:49] There's also an advancing computer science education grant funded by the General Assembly that will open for applications this summer. And this allows divisions to receive funds for professional development, curriculum, and work-based experiences to implement these standards for high school students. Thank you.

[02:29:11] Is there a motion to approve or I'm sorry, where am I? Is there a motion to approve the proposed 2024 computer science standards of learning to be fully instructionally implemented in 2526 and authorize the VDOE to make any final clarifying technical edits?

[02:29:40] Any questions, comments or discussion here? sorry, Dr. Northern. Yeah, I just like to say I appreciate the attention to screen time. You know, I know that that was something that we discussed in a prior meeting, and it continues to be an important issue across the nation. I know we're going to talk about cell phones and other things as well, but I feel like that was an important addition, and I appreciate the way that it was handled, so just want to thank you. Thank you. I just hear those to you and the team that just with every standards and places we've done, the listening sessions are always well organized,

[02:30:18] structured and ample opportunities so that the team does a nice job thank you i'd just like to join in that uh kudos to the team and i'd like to uh comment that i think the lack of uh discussion here and frankly the uh the the lack of pushback in the public hearings is not uh because of lack of interest in the topic but rather because you all did such a good job soliciting stakeholder input and designing the proposed new drafts that you didn't solicit a lot of edits and so thank

[02:30:54] you for the great work over the longer haul getting us to the point where we are thank you any other comments questions okay Ms. Ashton aye Ms. Kilbord aye Dr. Northern aye Mr. Hanson Mr. Rotherham aye Dr. Sievert aye Mr. Sturdifant aye Ms. Holton aye and Chair votes aye thank you very much and you have the next item all right we're going to go with item f final review the

[02:31:27] draft model policy concerning internet safety all right so one of the duties of the internet safety advisory council is to develop a model policy for local school boards that would enable them to better support internet safety for students and employees in their division the council drafted a model policy that included feedback from law enforcement, the governor's office, the state education technology directors association, the international society for technology and education,

[02:32:06] and the virtual learning advisory committee. It was posted on the regulatory town hall and no public comments were made. Since the first review in April, feedback has been incorporated to include digital well-being in the definition of digital citizenship an emphasis on digital citizenship and safety and then adding language to address the need for healthy screen time as best practice we'll continue to review this model policy twice a year and as we continue to receive feedback we plan to bring any revisions in december the educational technology team has provided a

[02:32:44] hub for educators to access resources that support the model policy the resources on the hub included feedback from the governor's office and national organizations our team reviewed over 200 resources using a rubric to determine which ones to include in the hub from consensus seeking using the rubric and so our educators will have these to help implement them their policies in the next school year thank you sorry i'm not calling is there a motion to adopt the model policy concerning

[02:33:22] internet safety with accompanying instructional resources second any comments or discussion here mr rotherham this is great work thank you i know it's been a lot to to pull together uh i'm comfortable moving worries of the language this year's stories technology is something to be experienced

[02:34:04] responsibly and um uh uh humanely so um so i'm comfortable moving forward i would like to offer a friendly amendment that we do review this not as an aspirational thing but in in six months this issue is moving very fast i mean just last week the surgeon general made an announcement about a proposal around social media in many states this is bipartisan figuring out how to address as our neighbors to the north of maryland for instance um and so i think it would behoove us to uh review it in six months so respect that i'd like to offer an amendment to formally pass this

[02:34:40] with that we will review this again uh in six months also give us time to get more feedback from uh civil liberties groups that we have to get uh so far to make sure we're striking appropriate balance there um yes i didn't want you i i meant the um so it reflects what

[02:35:27] sorry all right miss ashton hi miss kilgore hi dr northern hi mr hansen all right mr rotherham Dr. Siebert? Aye. Mr. Sturdifant? Aye. Ms. Holton? Aye. And chair votes aye. Thank you very much.

[02:35:48] Okay. Ms. Conway, you are up. Good morning, Superintendent Coons, President Creasy, and members of the board. I'm Jenna Conway, the deputy superintendent of early childhood care and education. Today, we bring to you an important item related to improving school readiness in the Commonwealth. As a reminder, the General Assembly passed a law in 2020 requiring Virginia to establish a statewide uniform quality measurement and improvement system for all publicly funded early childhood programs birth to five. We have been working very closely

[02:36:27] with this body since 2020 over the last four years to establish guidelines for that system, to roll those out via pilots at first, to have not only one but two practice years due to the global pandemic and to use, engage very closely with our partners and stakeholders across the state to implement this. In April, I presented for first review the VQB5 guidelines, including some of the successes of the system, 100% participation by publicly funded programs across

[02:36:59] the state, 30,000 class observations, 29,693 to be precise, as of the end of May, which represents just millions of minutes of feedback to our infant toddler and preschool teachers 80 of sites are choosing to use a quality curriculum from our extensive list of high quality resources and we are well on our way to establishing or launching rather an online portal that will be available to families so they can go to one place for health safety and learning information around across the 3400 sites from family child care to child care to faith-based

[02:37:38] preschool to school-based preschool to find more information about what's available for their children. These guidelines for 24-25 reflect five important shifts requiring classroom lists so we can better understand how these experiences are supporting children's individual learning development, some guidance on the right class tool selection particularly for our family child care in our inclusionary classrooms, expanding support for score replacement for the roughly 50 or so sites this year that did not meet our expectations, requiring improvement planning for those sites,

[02:38:17] support for score replacement to make sure that the system is accurate, and then as noted before, launching the online portal. We received a full unanimous endorsement from our Early Childhood advisory committee earlier this spring very excited about the results so on behalf of the superintendent we recommend that this board approve for final review the guidelines for vqb5 for the 24-25 school year thank you is there a motion to approve for final review the guidelines for 2024 2025 of the early childhood unified measurement and improvement system bqb5 so

[02:38:56] are there any comments or um questions here discussion so i'm super excited about this um i guess as a researcher i'm wondering if there's any funds set aside for an evaluation eventually of vqb5 this is a huge rollout across the street across the state i want to see it studied um i want to see how it moves the needle and some of these school readiness outcomes so um i guess talk to us a little bit about researching this over the next you know three to five years absolutely that's a great question so i think we are thinking about both holistically

[02:39:35] but then also evaluating different sub-components of of the work um we will likely uh uh uh with the permission of the governor's office be pursuing another preschool development grant um which would be uh three years of up to eight million dollars each funding to support the continuation and innovation of the system including some research policy partnerships with uva to analyze uh the data. We are working right now to invest in VA Connects, which actually will integrate across mine and Deputy Cooper's team all of the literacy work, the Virginia Kindergarten Readiness Program,

[02:40:12] and connect that to Link V5. So we'll be able to look at the actual impact on all of the children whose parents are okay with their children participating. And we continue to work with all, in particular, our public higher ed partners around pursuing outside grants. So for example, UVA just received an IES grant to actually do an RCT on one of the approved curriculums.

[02:40:36] So we're really working, we've been engaging with JMU, with UVA, with Radford, with VCU at kind of how do we get as many research policy partnerships to look at all aspects of the system in addition to capturing the lion's share of the data about how kids are doing in Link B5 and VA Connects.

[02:40:55] Any other questions or comments? Okay. Ms. Ashton? Aye. Ms. Kilgore? Aye. Dr. Northern? Aye. Mr. Hanson? Mr. Rotherham? Aye. Dr. Siebert? Aye. Mr. Sturdefin? Aye. Ms. Holton? Aye. And Chair votes aye. Okay. Thank you very much. Thank you all. Okay. And we are on to item I. Mr. Gilstrat.

[02:41:31] Good morning. Good morning, President Creasy, members of the board, Superintendent Koons. Today, I bring to you for final review of the advisory board on teacher education licensure's recommendation to replace technology education 5051 with technology and engineering education 5053 with a cut score of 157.

[02:41:56] The following information is all available in three agenda items, and this is the same information that I had presented to you in April. Highlights of this, the 50-53 Praxis Technology and Engineering Education Assessment will replace the older 50-51 Technology Education Assessment across the United States.

[02:42:16] As the name suggests, a greater focus on engineering is placed in the new tests. Additionally, there is a reduced emphasis on transportation and logistics and an increased emphasis on computation, automation, robotics, and involving technologies.

[02:42:34] This test will be required for individuals seeking initial licensure unless exempted by holding a full, clear, out-of-state license with no deficiencies and can be taken and passed to add as an endorsement in technology education. There are approximately 150 areas that you can teach with this endorsement.

[02:42:56] In February 2024, a multi-state standard setting study was designed and conducted by the Educational Testing Service, ETS, to support the decision-making process of education agencies establishing a passing cut score for Praxis Technology and Education 5053.

[02:43:16] Panelists from 10 states, including Maryland, Pennsylvania, participated in the panel. Thank you so much. Is there a motion to approve the recommendation of the advisory board on teacher education and licensure to replace the technology education 5051 with technology and engineering education 5053 with a cut score of 157 allowing individuals to take either the currently prescribed assessment for technology education, praxis 5051 or the new praxis technology and

[02:43:52] engineering education 5053 test through july 24. so move second any questions or discussion here on this item miss holton just say very briefly as the board's representative to abtel i just want to report that the abtel committee takes these recommendations very seriously and hears extensive evidence about the tests and the cut scores and i think has done a thoughtful job bringing these recommendations to us and encourage my colleagues to support them this

[02:44:26] one and the next thank you any further questions or discussion miss ashton she might be off we lost her i think oops miss kilgore ah dr northern mr hansen mr rotherham dr siebert mr sturdifan miss

holton i've been sheriff's eye okay thank you so much and mr gillstrap you have another one you ready for it okay please uh this afternoon i bring to you a first review

[02:45:04] of the advisory board of teacher education's licensure recommendation to replace praxis social studies content knowledge 5081 with social studies 5581 with a passing score of 153 for history and social sciences endorsements as is with the other one the following information is available for you within your packet some highlights that i'd like to point out the 5581 social studies assessment will replace the older 5081 Praxis social studies content knowledge assessment across the United States. The test requires the examinee to understand and apply

[02:45:42] social studies, knowledge, concepts, methodologies, and skills across the fields of United States history, world history, government, and civics, geography, and economics. The new test requires a greater focus on United States history and civics. The U.S. history and world history sections include more recent historical events and movement to better match the knowledge expectations for teachers. The civic section assesses more knowledge about active civic participation.

[02:46:14] Additionally, there is a reduction emphasis on behavioral science, geography, and economics. The test time has been increased from 120 minutes to 150 minutes with an increase of 20 more multiple choice items. The new assessment was designed to determine whether a candidate has knowledge and skills necessary for a beginning teacher in social studies in the secondary school.

[02:46:39] It aligns with the national curriculum standards for social studies, the national council for social studies, as well as college career and civic life framework for social studies standards, national standards for history, the national geography standards, and the voluntary national content standards for economics. As with the previous one, because it is a new assessment, abtel is also recommending that the data review be conducted after one year to determine if the pass score is providing for the greatest opportunity of teachers entering the profession

[02:47:13] while maintaining rigor this assessment was um had uh was a multi-state standard setting with 11 states including washington dc on the panel i can answer any questions that might be asked for you are there any questions here for mr gilstrap today dr northern you may or may not know this but do you know why they might not have consulted the nape uh frameworks for for civics in terms of some of the foundational work for creating this test i think it's just because they focus on the

[02:47:50] content specialist on most of these tests they rarely go with a general overview uh assessment group and nape would be more than just social studies so they try to focus on those that are specialists in that particular area that'd be my only answer on that but thank you is there anything further here mr rotherham i may have missed this in the presentation i know you have data on how our current cut score on the existing one on the existing assessment uh do we have how our new cut score would compare with other states so it's a new test so that we wouldn't have data from virginia on how that cut score would would transfer out but that information is part of the

[02:48:30] standard setting when they do the random testing before but we do not have the the actual test documents because no one has taken it yet and we don't know what other states are doing dr gilstra yes we we are in the top 90 90 of the states are doing the same cut score as we know okay is anyone doing higher no there's only a couple doing lower and are they substantially lower one of them is very substantially lower anything else here thank you mr gilstra we will

[02:49:01] see you next month thank you okay item k uh let's see ann or katie who's taking the lead on this all right good morning so um as we discussed yesterday uh as part of the new school performance and support framework uh the proposed regulations require at least four categories of supports for that summative label and we presented yesterday to the board and you know sort of in line with

[02:49:38] some of the feedback that we got from the stakeholder sessions from conversations with you all you should not use an a through f scale we really like descriptive labels that talk about the supports that schools would be receiving depending on uh their performance across all of the indicators and that this is sort of you know one of the primary tools to really communicate to the public the full range that full picture this full story of school quality um but this the four descriptive language that we've put forward yesterday for that highest tier would be a distinguished category then there would be on track off track and needs intensive support for

[02:50:17] those schools um that are really going to be needing the most help from the videoe and the office of school quality as a reminder today we're just focusing focusing on those four words in the bold the specific performance descriptor language below that smaller text is something that the board will have additional time to develop and weigh in on as we refine the system so that we can really be sure we know that just you know distinguished or on track isn't giving the full picture that we will also need those performance descriptors to really talk about and explain to

[02:50:50] the public what that means in terms of the new indicators growth mastery readiness as well as we talked about yesterday this is just one key piece of information that the public will receive they will also be getting information about the type of supports the schools are receiving so they might be getting comprehensive support because the entire school is struggling or has a very low graduation rate or a school might be getting additional targeted support or targeted support because a particular group of students is struggling on some of the indicators so as you can see in these various examples at the bottom you would have some schools getting that

[02:51:28] high level performance category like on track but then it might say you don't you're not identified for any federal support because you know your students are doing well across the board or it might say on track but you're getting targeted support because your english learners are struggling so this is all about providing a really holistic picture to the public that's more transparent more clear about where schools are performing across all of the indicators in the system so today though we are just as i said focused on those four highest tier just category descriptors not the specific performance level descriptors so with that i'm happy to turn to

[02:52:07] this but the superintendent recommends that the board is going to waive first review and approve the school performance and support categories as proposed um and this is going to be included in the essa plan draft that we'll be bringing back to the board next month so with that we'll turn it over to any discussion is there a motion to waive first review and approve the school performance and support categories as proposed second is there a discussion here if i may by

[02:52:42] way of a question to the presenter? Ms. Holton. And this terminology, the first I saw this term of terminology is I think this presentation was loaded into the system on Monday or so of this week. Had these terms been vetted with the public in any way, focus groups of parents, stakeholders, have we gotten any feedback? And I'll lump it in with do we, where'd they come from?

[02:53:15] are they in use in another state or where where'd we find the terminology so i'd say it's um an amalgamation probably of what other states are using i know that other states do distinguish i know other states use something like need support or in need of support and we presented a lot of examples from states at the listing sessions that we held in april across these seven superintendents regions eight superintendents regions across the state so we got that's where we got a lot of the strong feedback of you know we really like that this describes the support that schools need or we don't like a through f we like these descriptive labels that we're seeing in states like maine and

[02:53:52] nebraska south carolina some of the examples we pulled in and then i believe that this presentation may have been given or parts of this presentation to the committee a committee of practitioners this week um dr coons may be able to speak more specifically to some of the feedback they heard during that meeting dr coons yes we we have asked um for feedback on these particular terms and you heard um vast superintendent representative talk about that this morning so we have had some conversation about these terms with the field so miss holton i'm sorry back to northern and then

[02:54:31] miss holton and maybe this isn't exactly in what we're considering now but um my suggestion as we think about the placemat approach because i know we you know with all those we're going to talk about that further at some point um is the idea that these same terms would use would be used in each of those individual mastery and growth and readiness in the placement approach as well as this summative descriptors i think that that's something that we haven't determined yet is certainly something that could be part of the ongoing conversations we know it's one of that

[02:55:10] one of the final pieces of this is right like what does the public report card look like um you know we don't have to lay out that type of detail in the ssa plan or anything but i think if there was um it was an interest among the board in thinking about how can we also communicate clearly what a 76 on the mastery index means you know many states do use similar terms for the overall label as they do to describe the performance categories in particular for each indicator

[02:55:40] that's a way of discussion i heard mr uh braban on behalf of the superintendents of our 132 divisions this morning uh who are the folks who most have to live with this accountability system recommend that we consider needs support in lieu of off track and i think that's a consideration And or that we postpone a decision on this element until we have an opportunity to listen to stakeholders, I think was his two alternatives.

[02:56:15] I do see, I looked up the Maine and Nebraska labels after we heard yesterday that those were ones that we were looking to for models. Maine's are emerging, developing, meeting, and excelling. Nebraska is excellent, great, good, and needs support.

[02:56:33] And I think that the off-track language is not conducive to sounding like we're talking about support. And so I do think that that one in particular, we should look to an alternative language.

[02:56:50] And I would encourage us to adopt something like what Mr. Braban recommends needs support or something else that expresses positive partnership with those divisions. I also want to suggest that we may want to delay deciding on these until we know what the cutoffs are going to be.

[02:57:11] So depending on what the divisions are between the four sections may affect how we're labeling them. So if in the main system, well, in the Nebraska system, the third of the four categories is good, well, we wouldn't want to label these good unless we know where the cutoff is.

[02:57:31] But if we're going to label them in a way that suggests they need support, then I would want to know that we are roughly aligning our cutoffs that's going to determine where support goes. So, for instance, I could see proposing that we try to align the cutoff.

[02:57:50] If we change the off-track to need support, then we have two categories of need support, need support and needs intensive support. then I would propose that we try to align the cutoff between on-track and need support to as closely as possible adhere to our cutoff for comprehensive schools under the ESSA plan so that we know all the schools that we have identified as needing support are going to be getting some support. And all of that, I understand we're not ready to decide yet where the cutoffs

[02:58:26] are so i don't quite know how we can do these labels until we know what the cutoffs are those two decisions should be made together thank you mr rotherham or dr sievert um i'm gonna have a question here again for some some thoughts but i want to start with zooming out bifurcation of the system good uh we're doing good work there um the fact that we're moving toward descriptors is is also very good so there's there's good things here we are admittedly now getting into some weeds and when we're getting into the wheeze there's going to be things to talk about and tease out so it's understandable that's where we are yesterday for people who weren't part of the conversation

[02:59:07] uh i thought you know dr northern did a really good point about four versus five categories and the electric scale and and the middle being you know neither cold nor warm and so talk about four and so that conversation yesterday was really good led to a lot of reflection and and so but i do think we go back to slide four for just a minute we we see the potential confusion so even at the listening sessions that i had the privilege of attending um i i heard like the main ones that uh you know my colleague just lifted up were well received but i struggled even then with maine's kind of third category of developing because i was like well what is

[02:59:44] developing and what rate are they developing and how many years can you be developing can a school be developing for like seven years and still be developing so i i saw i was good with excelling and meeting and also i was clear with you know merging but i was struggling with developing and really that's kind of where i am i think what we heard today um is is that's that third level i'm kind of struggling with virginia um because i don't know you know off track again you could be off track but trending in a good direction or you could be off track or trending in a negative direction and so i think the trending is important but i think the fact that we've already adopted

[03:00:21] language saying that we're going to have at least four categories hopefully gives us some elbow room moving forward where whatever we call this third tier um we could probably come back and add you know a color a trend line an indicator something to bring some clarity because again if you're off track and going down that's different than off track and moving in the right direction so the the third tier even even in the nebraska example good that just kind of you You know, the third one is where I struggle.

[03:00:55] So that kind of does lead me to my question, Dr. Coons. As you all worked on these four, I imagine the third tier is probably where discussion was. Were there any runner-up names or any other thoughts in terms of the, because I also imagine the idea of using support, need support versus needs intensive support, there might have been some federal wrinkles there.

[03:01:16] So what were some of the thoughts and conversations you and the team had? Yeah, sure. I think one of the concerns around emerging, developing words that sounded like schools were going on track, a lot of conversations, including practitioners inside, were, well, what if you're sliding backwards?

[03:01:36] What if you've been from on track to struggling and you're not identified that way? I think some of the other conversations around need support is then you are labeling half the schools as needing support. and you might have a school that's really moving, but not quite there in the needing support. So I don't think we're ever going to come to a perfect place. And the hard part with not meeting that benchmark is, are you not meeting that benchmark because you just haven't quite got there? Or are you not meeting on that benchmark because you've slid backwards? And so they landed on off track as the simple statement that you're not on track, you're just not there yet. And it

[03:02:16] has no emerging, developing, sliding connotation of where you are off track or not off track. We did have a couple of stakeholders ask if you could put off track but growing. So for example, if you were growing significantly off track but getting closer or something like that, that was one piece of feedback that we heard quite a bit. But I don't think anyone loves not being quite there. So any performance category title that sets in that space

[03:02:49] tends to get reactions one way or the other. I would like to remind us that the purpose here is transparency and understanding on behalf of not just people in schools, not just those of us sitting here in this room, not people who do education every day. This is for people to understand who are parents and families. And so while we're deciding what the main categories are, these descriptors have yet to be fully baked at this point. And that's really where

[03:03:29] the work is going to come in under those descriptors to term what off track and on track actually mean remember that those four words or those four um uh columns the bold words there those are what we are voting on today it is not the the individual descriptors that come under it today so the description of those categories is really where the meat and potatoes comes in here mr rotherham yeah i'll i mean look a couple a couple of thoughts and i'll just i'll pick up on

[03:04:08] on that one i i do think uh we've lost the thread and we're back into what's what are labels that adults are going to like and it's going to make everyone feel comfortable it's about kids about families first and the people who really live under this system are not the adults it's the kids and then the families and like no one's gonna like a you know we're gonna go round and round on these descriptors i've done this work for a long time and we could spend a year and we would still not agree and that category of is it and no one seems to worry about the school that's going to be on track but might be slipping backwards but not so much that's not often everyone's good

[03:04:47] with that it's only is off track and it's not about what does that mean for teacher and learning it's like how is that going to make people feel like we've lost the plot here and this is another one of these moments where we're up up at the cliff and are we gonna like look over hold hands and jump and do something difficult or are we gonna back away do i love these labels no are they the ones that if they said andy come up with the labels that i would come up with no probably not but like i'm one board member and as i said we will spend a year i do think these are clear they will help people understand okay this is really good this is okay but could be better

[03:05:24] there are issues here as a parent or caregiver that you need to be aware of and this school has serious problems and fundamentally we can argue about the verbiage and delay and delay or we can say like is this clear and explainable it's it's clear and explainable so i have no problem moving forward and i would just again suggest we're at one of these gut check moments about like what what do we what do we actually hear for and what is our what is our charge mr starathan um madam president as i look at these

things of on track off tracks i think they're pretty clear i think we need to be bold and genuine and honest with whether or not you're doing what you're supposed to do or whether

[03:06:03] or not you're where you're supposed to be at um when you look at off track versus um i think need support it's really the same thing so let's just be bold and go with either their own tracker or not and if they need support then we go with the needs intensive support so i like the um the names there as annie said um everyone's not going to be happy and there's adults getting caught up in emotional feelings about certain words the words that are clear and descriptive and i look forward to moving in this direction is there anyone else that wishes to speak since um i think

[03:06:38] spoken on this finishing yet yeah hold just a minute is there anyone else who hasn't spoken dr northern so i agree with my colleagues about this like i'm another one that you know these wouldn't if you ask me i would quibble as well about the the ratings we have done we have quibbled and we've heard focus groups and so on and so forth i mean if i had my druthers like research says um you know a through f and stars and cardinals or whatever actually move the needle on academic performance so to me like if you ask me i'm like okay it's a compromise um because we

[03:07:17] got some a lot of feedback that says we don't want that kind of thing in this state and we are respecting um that feedback that said there's been learning heroes which is a parent group has done a ton of work around this issue they've gone to five states held multiple focus group with the parents did polling and what did parents say they want um a score a score so that they would know like 63 percent oh okay well that means something um and they want buckets you know which we're talking about like placement approach let's look at each bucket so you know when you do

[03:07:53] ask parents um you do get like they're not looking at this from the the policy wonk end you know they're looking at this like okay i get that you know so i do think we need to keep um parents in mind i'd also say that um you know this is going to evolve all states have these programs evolving i mean you guys saw yesterday when i asked um and i was like well i really like that strength index i mean that diploma index in louisiana she's like yeah they're changing it because it's too heavy on graduation then graduation can be problematic for reasons i laid out um so my point is i think that

[03:08:32] we should this program should and this this differentiation system should continue to evolve from feedback from the field from what we're hearing from educators from what we're looking and seeing in the data like this is not coming down you know as a 10 commandment on high you know this is iterative um and it's the way that it should be it's the way that other states do it in terms of learning from um these uh it's like formative like teachers do you know you take formative feedback and you continue to evolve your teaching we're going to take formative feedback and we're going to continue to evolve the system to meet the needs of virginia kids and parents

[03:09:07] anyone else that hasn't spoken on this item yet okay now dr siebert you may have round two thank you yeah so so i'm feeling i'm feeling pretty good bifurcation is good um the descriptors are good and i agree there's an opportunity for evolution here i think that's where it's good that our previously adopted language is at least four categories i really the thing i think we've heard here what i what i think my colleagues have helped me with is my desire is ultimately that our system showed trends and and i think even dr northern is talking about that they're the system we're working on is probably going to end up with some sort of a number associated with it and i

[03:09:46] think you know previously we've used like a three-year average and rolled it together and that three-year average has distorted what's happened over this three years and so i hope ultimately whatever we have on our placemat shows what a school's number was over three years so we can see the direction that a school was moving. And so I think ultimately we might have, you might be off track, but the off track is in green or the off track is in orange. I think there's probably ways we can distinguish these things because we've set at least four categories. I think of the four descriptors, whatever descriptor we had for that third year is where the most discussion would be.

[03:10:26] I think is where it'd be the bigger deal, but I do think we can improve it because we've used the at least four terminology. I do hope that we can move toward some sort of a trend index somewhere on the reporting that we come up with so we can show the direction the school is moving, not just where they are at a moment in time. Thank you.

[03:10:47] One more, and then we're moving on. So I have two questions and then a comment. my questions to dr kunz first is dr kunz under our current system we do have a definition of what on track is and it's the 75 percent on english language arts and 70 percent of your students passing and there's nuance in it but essentially we do know what on track is do you have does your team have some concept of what is what do we mean by on track here so that's my first question i I mean, do we know what the benchmark is that's going to help us roughly draw the line between on-track and off-track?

[03:11:27] And then, and likewise, the other categories, but I think that one may be the most important. And then my second question is, are we assuming that we're going to be providing significant support to both the off-track schools and the needs-intensive support schools, or are we primarily thinking of support for the needs intensive support schools? And to me, that would boil down to, are we anticipating that the lines are going to be drawn such that approximately

[03:12:03] most of the schools in off-track, as well as in needs intensive support, are also going to be comprehensive services schools or targeted schools under the federal system, such that where our supports are going to go is going to be meeting most of the needs for these schools for the schools in these lower categories. Ms. Holton, I think we've talked about whether or not we were going to provide those kind of category cutoffs several times yesterday in four and a half hours. And we stated we were going to bring those to you in July with an additional model. So I feel like I've

[03:12:41] answered that question several times. I think our team is more than ready to support the needs intensive support hence the language around support i think it depends on where a school is off track as you can see from this slide there are varying reasons and varying categories that would match up with that but the team is prepared to bring that information to you in july so well then my comment would be miss holton that that i can't support and i can't support these labels affirmatively today without that additional information and i would argue at the very least

[03:13:17] that we should wait, that the labels should align with the content of which schools are being allocated according to the categories. And without that knowledge, I would encourage my colleagues to postpone. And I just want to say a little bit more broadly, and I promise I'll try to say this once and then not again, but our stated goal, and I think we're all in agreement, and that's a good thing on our stated goal of high expectations, helping all students meet high expectations.

[03:13:49] And I think many of us share a diagnosis that our biggest, one of our biggest challenges now is that our neediest children are in crisis and have been for quite some time, well before the pandemic, and

are not, our system is not serving it well. And I only take, I agree with Mr. Rotherham's uh comments on that topic yesterday except the notion that nobody's calling it a crisis i think many of us have been calling it a crisis for for quite some time uh in in i think the evidence the

[03:14:25] research shows that the solution to that crisis is two pieces high quality curriculum and high quality teachers for all students we're making huge progress on the high quality curriculum with the adoption of the virginia literacy act and the implementation of that this year which is our divisions are engaging and our department engaging in heroic efforts to make that successful i think it will be a model that we can then roll out in in mathematics and perhaps other topics as well to ensure everybody's getting high quality curriculum to get everybody high quality

[03:14:59] teachers we need to go in a different direction and part of that is money and i appreciate the fact that mr rotherham's comments supporting the notion of more money i appreciate the fact that this board voted for um uh the at-risk add-on money i was disappointed that the administration did not propose any money for at-risk add-on or otherwise to support our neediest students but but that did ultimately sign a budget so that that includes at-risk add-on which will help a little towards our neediest students, but not to the point where we can reverse the trend we have now

[03:15:37] of our neediest students being underserved by having vacancies and under-certified teachers and under-experienced teachers in much higher quantities than our other successful students.

[03:15:53] And I bring all this up today because I am concerned that where this board is going on this framework is going to have unintended consequences, driving teachers away, driving families away, and it's going to hurt teachers who are serving our neediest students, and it's going to hurt those neediest students.

[03:16:15] i'm concerned that this uh program has not fully thought out um it is um there are at least a dozen significant decisions including the most important one of the most important decisions of these where the lines are going to be drawn that we haven't made yet even though we're implementing this system starting with the school year that starts in six weeks and and um i heard somebody refer to it earlier this year as a pilot year. It is not a pilot year, as Dr. Koons and Anne clarified yesterday. It is the first full year of the new system that we're embarking on. It is not

[03:16:53] based on, not consistent with the research. The crucial decisions such as these labels and the cutoffs have not been vetted with the public. It fails to recognize and support the efforts of teachers and schools who are working mightily and succeeding to help their students grow towards mastery. And it is not aligning, or at least we do not yet have adequate assurances that we're going to be aligning real supports to all of the schools that we are labeling as not on track.

[03:17:29] And until we can get to that point and to we can properly vet these ideas, including with the business community. I think it's just a real error that we have not yet vetted these ideas waiting graduation. Business knows that high school graduation is extremely meaningful and that we're underweighting that. Hearing from Mr. Bland this morning that he hasn't been consulted, that the business community, Chev, hasn't been consulted. This proposal is not yet well thought out and I'm not ready to vote for it today. Thank you. Before Ms. Ashton has her hand

[03:18:08] up, but before then, I would like to say, because I need to correct the record there, we absolutely have heard from the business community. We have had public comment that we have received

in our public comment folders over the last few months that have included letters from the business community and we have had public comment actually present here in our meeting that has given us feedback from the business community so that's not an accurate statement miss um ashton yeah

[03:18:42] thank you so much for being tricky um okay great thanks for some of the um this whole time i agree with some of your sentiments and i want to just add a couple of things it what is going to make the difference you're absolutely right is high quality teachers high quality instruction materials and i think that this board you know since i've been here has done amazing work with staff to make sure that we have had high quality standards as well i think where where i where i disagree

[03:19:15] about uh under uh underestimating our teachers and our leaders is i i think that this framework gives clear sets of priorities. It gives a clear set of directions. And I think that it's going to inspire our teachers with clarity and less just noise.

[03:19:38] And right now, teachers are working very hard without a lot of clarity. And so I'm going to vote in support of moving this work forward because I think it's consistent with what we all agree around high expectations. And I think the team has worked really, really hard to be responsive to the things that we need and I I vote for not letting you know perfect be the enemy of good and keeping this work moving forward knowing that we're going to learn a lot as we get more data and the team is able to give us more of the heat maps so I am in support and

[03:20:16] thank you for taking my comments Mr Rotherham can you bring us home please just a couple of comments yeah i would on business i would also note there was a op-ed in the richmond times dispatch from the chamber of commerce saying that they're being supportive that this is something we have to address in the direction we have to um uh we have to move there was an earlier comment i just wanted to come back to about like the labels that it nobody used the word arbitrary but implied they're not linked to anything whatever like this is a again a useful framework it will be clear to parents and it's linked to our performance system which is tied to our standards and i think when when this all rolls out people are going to be able to see that and over time they may decide

[03:20:56] they want to link them differently but these are not just random labels that are going to be thrown at schools they are linked to a well-developed system people then may decide they want more emphasis on on some of the things we're talking about yesterday the military and so forth they want to change how we're thinking about graduation rates or whatever but it's it's it's links these are not sort of arbitrary labels out out of um out of left field they're they're tied to that and need to be communicating you are on track to meet virginia's uh performance standards you're off track all of that and that and i've full confidence the departments can be able to do that the last thing you said bring us home so i will um i recognize i might be standing between us and lunch

[03:21:35] i'll just i i agree miss hold i think you and i agree on many things around this i think some people agree this is a crisis but we have to be candid many people don't just in our time on the board we had discussions where it was like oh we're not so things aren't so dire you're talking about us like we're mississippi and then we got data and said well actually like mississippi kids there black kids hispanic kids they're outperforming what we're doing here in the commonwealth we had what was learning loss was it really such a big deal no probably wasn't so bad well turns out the nape came in we had the largest learning loss uh across um uh across the 50 states so some people seem to recognize this is a crisis but again and again we keep getting pushback that

[03:22:15] is it really so bad is it really that big of a deal we had school leaders saying don't pay attention to the sols and learning loss data kids are resilient they'll come through the pandemic fine but when we know there's going to be a huge echo uh from the effects of the pandemic that's that's going to impact students and so like there there's there's always a reason not to move forward there's always a reason to wait this is a moment where i think it is appropriate to move forward we have a well-developed plan this is not arbitrary uh and and we can sort of spin on this and we'll be right back here a year from now having the same conversation with another year gone

[03:22:50] uh for kids this system will help us report on what's going on and hopefully spark a new conversation across the commonwealth i call the question okay miss ashton yes yes miss kilgore dr northern bye mr hanson all right mr rotherham hi dr siebert mr sturdifant

[03:23:22] miss holton no and chair boats eye okay um as we're moving on i think we have a couple of items that shouldn't be very difficult to get through before lunch if you all will indulge l m and o and then we'll take a break for lunch shouldn't be long what did i say lm and o l m n thank you

[03:24:08] Okay um is there a motion to waive first review and approve the recommendation to revise the current membership structure of v v cow in order to include an additional position to serve in the national expert role second any discussion or questions here hearing none miss Ashton hi miss

[03:24:47] Ms. Kilgore. Aye. Dr. Northern. Aye. Mr. Hanson. Aye. Mr. Rotherham. Aye. Dr. Siebert. Aye. Mr. Sturdifant. Aye. Ms. Holton. Aye. And Chair votes aye. Thank you. And then Mr. Chapman, you are item M and N. O as well, which I also expect to be very quick. Okay, we can do if it's quick. Only if it's quick. Only if it's quick. Thank you.

[03:25:14] President Creasy, Vice President Hansen, members of the board, and Superintendent Koontz. This is a little bit of a straggler item. As you might recall, last month we approved a series of nominations to the Board of Education's advisory committees. We had one that was not fully vetted at the time, but so we are presenting to a nominee for a classroom middle school teacher to the advisory board on teacher education and licensure.

[03:25:38] We have that for you today. The recommendation from the superintendent is that the board wave first review and approve the nomination. Is there a motion to wave first review and approve the recommended nominee to fill the vacancy on ABTA? So moved. Second. Any questions or discussion here? Hearing none.

[03:25:58] Ms. Ashton? Aye. Ms. Kilgore? Aye. Dr. Northern? Aye. Mr. Hanson? Aye. Mr. Rotherham? Dr. Sievert? Aye. Mr. Sturdifant? Aye. Ms. Holton? Aye. And Chair votes aye.

[03:26:14] All right. Item N. Thank you very much, President Creasy. This item is the Board's fiscal year 2025 unified regulatory plan. As you might recall, the Board approved its first regulatory plan last year.

[03:26:30] This is to comply with Governor Youngkin's Executive Order 19. I would like to emphasize that this is a document that the Governor's Office of Regulatory Management does describe as a living document. So in particular, the date ranges are estimates the board is not bound to act within these times.

[03:26:47] But really the purpose of this is to be transparent with the public of the type of regulatory actions that the board expects to come before it over the next fiscal year. And so this is the projection

based on the board's current list of actions that it has ongoing, as well as some of the expectations from the results of the legislative session that just closed.

[03:27:09] and so some of the items that we expect to come up over the next year the recommendation from the superintendent is that the board wave first review and approve this plan the plan is due on on june 30th of this year so there's some some urgency to it thank you say again are there any questions just be briefly by way of discussion as to this and the next item i just take exception to the characterization in the documentation that we are bound by the governor's executive order

[03:27:48] as an independent constitutional authority we are not bound by the executive order but i have no problem with the notion of reviewing regulations and therefore have no need to vote against the item thank you any other comments or questions ms ashton hi ms kilgore ah dr northern hi mr hansen all right mr rotherham dr sievert mr sturdifant ms holton hi chair votes and then your final item mr chapman yes thank you very much this is

[03:28:23] another list of uh of chapters that the department is hoping to open periodic reviews of regulations from the board's regulatory catalog you might recall in december of last year we brought a similar list requesting permission to open periodic views over the first six months of 2024 we are completing that process and we hope to have start having those items coming before the board um july august september of this year with those results the board finalized but we would like to keep this train moving and so we have a another list of uh of chapters including um you know gifted students people transportation adjusting grievances that's a teacher licensure chapter

[03:29:00] literary loan applications cte student scholastic records jointly owned and operated schools and programs alternative education driver education the division superintendents of schools allowable credits for teaching experience school breakfast programs and the designation of school divisions of innovation the recommendation from the superintendent is that the board wave first review and approve this to open these again the results of these periodic reviews will come back before the board so this is just asking for permission and the periodic reviews on their own do not initiate any regulatory actions any results of the periodic review that might require

[03:29:39] regular regulatory activity will come back to the board for a separate authorization so this is really just the formal process to comply with periodic reviews thank you is there a motion to wave first review and approve opening periodic reviews on the regulatory chapters identified in this item between july and december 2026. any questions or comments on this item hearing none

[03:30:10] miss ashton miss kilgore uh dr northern hi mr hansen mr rotherham dr siebert mr sturdifant ms holton hi and chair boots i uh we will reconvene at 1 22 we will have lunch now so thank you

[03:30:32] it's 12 22 i'm giving us an hour thank you okay ladies and gentlemen and we are back

[04:37:14] um and we are taking up item p right now first and final review of the virginia literacy act updated professional development list go right ahead please good afternoon so the virginia Literacy Act requires K through eighth grade educators to be trained in evidence-based literacy instruction and research-based reading research. The board approved three options for this training: letters, Orton-Gillingham, and UVA. Divisions have requested clarifications on the training, which include the volumes of letters and the criteria for the Orton-Gillingham courses,

[04:37:54] and so video is recommending that the board approved the clarification of the alternatives to the uva developed canvas course this clarifies letters volumes one and two and then orton gillingham courses that are at least 25 hours of training and include the essential components of literacy are there any questions here no questions yes i'm just doing this seems great it's terrific work as i've done on other ones on this i'm going to recuse myself because of professional conflicts but

[04:38:31] it's great work thank you thanks any other comments here okay um okay is there a motion to approve the clarification of the alternatives to the uva developed canvas course as presented in this item is there a second okay um is there any discussion or any questions on this dr siebert do you have a question or anything oh okay thank you for your preparation okay sorry

[04:39:11] dr northern um i'm just wondering how much of this is online or it versus in person is there a breakdown at all sure so the uva modules are all online um letters and og are in person but they also have supports that are online as well further questions sure okay anything else from the board all right miss ashton uh miss kilgore uh dr northern mr hansen mr rotherham accused dr siebert

[04:39:51] Mr. Sturdifant, Ms. Holton, and Chair Boats, aye. Thank you very much. Okay, and so now we have to return to item D, and what's that? It's like we're waiting for staff, so if we could just pause, unless you want to jump in.

[04:40:20] Do we want Ms. Love as the staff attorney to come up and review the College Laboratory Partnership Fund and the intent of that fund and the history of that fund for the board? Would that be helpful?

[04:40:39] Perfect. I don't see a need for that. I'd actually be good with that because I think, if I may be mistaken, it actually predates the most recent round of appropriation. It goes back further, so I would actually appreciate that.

[04:40:54] Right. So you guys have got to be a hurting bunch if this is what you want to do on a Friday afternoon. So just to put a little bit of a framework on kind of where we are with the fund. The fund was established when the college lab school law was enacted in 2010. And it's typically, it's typical that any balances left in state agencies budgets, for example, at the end of the fiscal year revert to the general fund.

[04:41:21] The lab school fund, like a lot of other funds, is established as a non-reverting fund, meaning it doesn't go back into the general fund at the end of the fiscal year, but carries forward. And that's what the statute that sets up the fund specifies. That statute also directs that any interest that's accrued to the fund remains with the fund and doesn't revert.

[04:41:43] The Board of Education is given a role in saying how the monies will be spent. The actual disbursements are made by the Comptroller of the Commonwealth on the written request of the Superintendent of Public Instruction. In 2022, when the General Assembly put $100 million, so as far as I know, no money ever came into the fund.

[04:42:04] There were no appropriations. There were no gifts, although the fund is able to receive gifts, and that may be something to think about going forward. um when the general assembly put 100 million dollars in the fund in 2022 it kind of tweaked those general statutory uh very much tweak those general statutory um parameters um 100 million dollars went into the fund the general assembly directed three buckets for the fund 5 million for planning grants 20 million dollars for startup costs and um the

remainder the balance which didn't say 75 million said the balance so maybe they were thinking about the interest i don't know

[04:42:43] would be for per pupil funding, but it also directed contrary to not, and I don't mean in violation of, but unlike the statute that says the money will not revert at the end of a fiscal year, the General Assembly said as to this appropriation, this, any, any monies in the fund at the end of June of 2024, so at the end of this month, will in fact revert to the general fund, so that's been part of the the sort of um keeping everybody focused on on getting the stuff done by this

[04:43:19] timely date um the monies that will revert uh are we've confirmed this with the the appropriate uh legislative committees and the department planning budget the monies will revert are the monies that are not obligated so while the board has obligated we have con under contract you know tens of millions of dollars of the fund um but they're not yet expended because these lab schools are not open for example but there's money that'll be set and not will not revert at that time so that's kind of where we are in that process and i'm happy to take any questions any questions for

[04:43:59] miss love mr rotherham did any schools open between you you laid out and this may be beyond your purview you laid out the sort of appropriations history and so forth from 2010 did any schools open in that window did the statute just sit on again again if that's not like not not to my knowledge I mean I was seven years in Williamsburg so I don't know what happened in Richmond when I wasn't here but I'll keep an eye on but I don't I don't think there were no lab schools that are open to my knowledge there was we did go back as as this effort was ramping up we went back and looked at some of the early board actions around this there's a lot of conversation a lot of

[04:44:38] interest a lot of momentum but I think without the dollars as far as I know no lab school was ever opened okay and then this fun oh i'm sorry uh excuse me this fund is you said it's similar what's another what's an example of another fund that it's similar like now analogous like to give any to give an example there's a lot of special funds like this um and you would quiz me on something professor that i was not no no it's not i'm just i'm more curious in terms of when people

[04:45:10] ask if i get to be like well this is similar too because um you know i can get back to you on that i can imagine a fund if there were like a victim's compensation fund right that might be established to compensate victims of crime and help make them whole or get the support services that they need so that's the kind of thing i'm not saying that fund exists or is described that way but that's the kind of fund that would be expected to carry over you might not spend all of the what you want this year but you want to be able to have it available for next year we we have the dolly part and imagination library fund we have a stem advisory council fund i think we have one other

[04:45:50] one that was established without an appropriation so we have several funds that are like this and we have a deadline obviously june 30th that we're working under here at the fiscal year but there's not this the fund doesn't sunset it will still be there on july 1st it just will be is that correct right the fund as a concept will still be there uh it'll still be able to receive appropriations gifts requests and that sort of thing okay all right thank you sorry for all the questions thank you thank you dr armstrong good afternoon madam president board members i'm going to provide you

[04:46:22] all with a handout in response to a question we had earlier and i'll walk through this briefly

[04:47:05] thank you all i would like to give a brief update on our expenditures and also our balance currently in the college partnership lab school fund and as i know miss love likely just explained i'm I'm sorry, I missed that. When we met, when this board met in May, we had $10.6 million, which was available in the fund out of the $75 million that was remaining after the General Assembly did sweep $25 million of that in the Caboose Amendment.

[04:47:34] In addition to that $10.6 million, it was brought to our attention here in the last week that this fund, like any fund, accrues interest. And we have also realized an additional 3.124, I'll give you an exact number, $3,124,065 in interest.

[04:47:55] So we are currently working with before, and I'll walk through this. So as of yesterday, before this board approved the three lab schools that were before you for consideration today, we had $13,724,065.

[04:48:16] That's the sum of the $10.6 million that we had prior before any of the additional lab school approvals and the interest that I just mentioned. So $13,724,065. Today, you all have approved the lab school applications for ODU Suffolk, the George Mason Data Science School, as well as the ODU Eastern Shore Space Academy.

[04:48:40] And we anticipate upon contract approval that that will encumber an additional $11,160,000 of that fund. Bottom line, we now have $2,564,065 left after the approval of the three lab schools today for us to use moving forward.

[04:49:07] You can see in the table below that starts with the blue row, we are going to take the money that we have remaining in the fund, the $2.5 million, in order to support the startup funds of those five lab schools that have been affected by the General Assembly's language that's required fiscal agent and partnership.

[04:49:28] You can see in each of these rows, it lists the lab school that has affected, their start date. We have based a number, and this is a not-to-exceed number, but of course we'll have to negotiate this just like we do with all of our finances with lab schools.

[04:49:45] That is based on the per-pupil amount overall for these five lab schools. So to jot this down, there are 592 students, and it comes to about $4,331 per pupil. so that that will be the upper limit of how much money will be allocated for startup support for these five lab schools and this goes on to the other side as well which also includes Paul de

[04:50:12] Camp and Roanoke give you a moment to digest Mr. Hanson thank you Andy and the staff and I just um and I say given the board's obligation to effectively steward these lab school fund resources on behalf of students and innovation, the current and the current use it or lose it situation that we're facing with the General Assembly for all fund monies to be obligated by

[04:50:48] June 30th. And given Old Dominion University's oversight of 60% of the Virginia's lab school portfolio, I believe it is prudent and imperative that we consider utilizing the entirety of the remaining funds that you've articulated here to ensure that every dollar works for kids by helping kickstart their lab school in the network and supports by the start of the new fiscal year for these reasons i will provide a motion to move that the board of education award to the lab schools being established by germana community college mountain gateway community

[04:51:24] college paul de camp community college roanoke college and emory and henry college additional startup monies from the college partnership laboratory school fund in addition to any accrued interest for the sole purpose of supporting the partnership and startup activities provided by Old Dominion University as fiscal agent and partner in such relative amounts as are appropriate, taking into account the date proposed for opening of the particular lab school, the relative expenses associated with travel to the various lab school locations, and total students

[04:51:59] expected to be served, and that the president of the board and superintendent of public instruction be authorized to negotiate and execute amendments to the lab school contracts to accomplish this was that is that a motion that's a motion could we get a copy of that just so we that was a lot copy of the motion okay so it's it's three it's all of the five so it could maybe just electronically zap it to us it's just a lot of motions there's a lot of motion and there's no

[04:52:38] agenda item that outlays it so just so we know what we're doing it sure would be helpful if we could see a written copy of it okay thank you please yes yes okay

[04:53:17] can we hold what and while we're waiting for that can we go forward with discussion or are we ready yes we may go forward with discussion who would like to speak there was they all seconded before discussion ask one please a clarifying question mr rotherham i just want to make sure So 13 million that you have here remaining money to support that is inclusive of the interest.

[04:53:39] That's the total that's the total amount. Okay. Yes, sir. Thank you. I'm sorry. Say that again. Oh, go ahead. Dr. Armstrong. Okay. Any other questions?

[04:53:55] Comment? Ms. Holden. Go ahead, Ms. Holden. So thank you, Dr. Armstrong. This is extremely helpful. I would like to ask that this document be posted with the board meeting, perhaps as an attack back to the minutes, but otherwise.

[04:54:11] this is what I was looking for earlier, so very helpful. Thank you. If I understand correctly, so we have two and a half million left approximately after what we've allocated today, and the department's recommendation is that we allocate all of that remaining two and a half million through the five contracts up to that sum to then be supportive of ODU's role as fiscal agent. And then this is going to be administered to the IHE. It will be, it will be provided as

[04:54:51] startup funds to these five lab schools. To DIH is the, what's, what's that? Oh, IHE, the Institute of Higher Education. The ODU Institute. So it's going to be allocated directly to the, the ODU Institute, or is it going to the applicants? It will go to the applicants. Goes to the applications because that's how we're authorized to allocate money to be directed to the ODU Institute up to that amount. Among other things, but yes, that's part of it. And then am I correct that in addition

[04:55:24] to that two and a half million ODUs in its fiscal agent role will receive 5% and that's what you've allocated, you've outlined over here on the right. So they will in addition be over time receiving a 5% fee. And my rough math is that adds up to something like $750,000. Is that right?

[04:55:44] And we did. And I apologize. I said in sum total, all of that. But in those right-hand columns, you can see what it equates to yearly over the course of their grant fund window. So, just to be clear, on the Germano one, they're going to get $250,000 over time.

[04:56:00] Right. And on the Mountain Gateway, the fiscal agency will get $100,000 over time, et cetera, et cetera. Okay. So that the sum total going to the fiscal agent will be up to the $2.5 million that we're being asked to authorize today, plus the $755,000 or thereabouts that they will get as a percentage of the per pupil funding over the course of time.

[04:56:31] And again, the left-hand column that we're awarding through startup funds will go to the applicant. The operational funds will go directly to ODU. And then my only remaining question would be, are we running into any problems there that the, if the two and a half, oh, you're not allocating the two and a half million as startup funds because there's a cap on the startup funds.

[04:56:56] You're allocating it as additional per pupil spending. is that we're allocating those startup funds as additional startup funds so then is there a problem that i thought the legislation had a cap of 1 million startup funds per application are we not violating that million since those applications each already have a million dollar startup right you'll see that we've actually miss love is going to come and address this please please i had some one question when when this was under discussion the board's guidelines um say that typically

[04:57:32] um a million dollars would be awarded in startup funds but and i don't have the precise language in front of me but you know on a case-by-case basis additional startup funds can be awarded and in fact the board's done that i think with uva and mary washington um specifically mary washington asked for equipment as part of their setup for their school so we awarded about 202 million i think um for 2.2 for mary washington so they could establish the equipment of the school so there's nothing in the appropriation language or in our prior guidelines that would prevent us

[04:58:09] from adding to the startup pot no the only limitation that i think that the general somebody's put on the startup funds is a total cap of 20 million dollars to be awarded startup funds and this uh allocation dr on strong you've done the math that we're not going over thank you okay everyone should have in their inbox now a copy of the motion i would ask that you take a moment to review it if anyone else has a question or a discussion point please do so now

[04:58:46] dr northern i just want to kind of put it in perspective um with the with these monies i mean i think we're getting a bargain here i mean i i do quite a bit of um you know some of this work around convening organizations and and so on and so forth i mean to my understanding they're going to be serving as fiscal agent for nine is that right nine lab schools um they're going to be doing data sharing convening principles running the center for education innovation and opportunity

[04:59:20] which is a sort of, in my mind, like a think tank and a center for PD. I mean, they're going to be doing a lot of just in terms of trying to problem solve and think about transforming education across the state. So I'm seeing their role as not just like a fiscal agent, but I think the partner part of this, in my mind, is probably why I like it. And yes, I'm partial to ODU, but the way that i heard it in the presentation was they're filling such a bigger role than a fiscal agent they're actually trying to serve as a think tank for education and a hub in the state

[04:59:57] where we can really begin to get the best thinking across these schools use what we're learning and leverage it in the larger sector so i don't know i just when i look at the when i look at the money um i don't again i think that we're the way it looks to me is that they're they're really a partner and not just a fiscal agent with all that they're proposing to do um and i just don't want us to lose sight of that as we keep

staring at this spreadsheet okay any further comments or questions i think it's holding it i do as well yeah so now looking at the motion the motion does

[05:00:35] not include these numbers don't we need to include these up to the figures calculated by dr armstrong for each of the five schools so that we are not allocating beyond our uh authorized budget amount speak to the remaining amount in that motion if i'm correct is that correct so i i would just propose a friendly amendment that we add authorized to negotiate and execute amendments up to and then

[05:01:06] list the numbers for each of these uh uh schools according to dr uh armstrong's calculations and also not to exceed the available appropriation but yeah miss love or is that okay theory I just want to make sure.

[05:01:37] And just to respect with Dr. Northern's point, my sole goal here is to make sure that ODU's role is transparent and clear and that they are getting properly supported in that role. So I'm not at all questioning the value.

[05:01:53] Two and a half million dollars of startup money, that's basically $500,000 of startup money per grant. each of those schools is getting a million dollars of startup money for those grants. So ODU is getting half that amount per grant. It's certainly in the ballpark for what we're getting out of it. I have no concern about the amount. I just want us to make sure we're doing it legally and that there's funds available. I have a question for Dr. Coons. Do you feel like my only concern is this is transparent. This is all going to be out there and people will be able see how these contracts it's all clear i just want to make sure this isn't going to in any way

[05:02:33] if there's any unanticipated costs or changes isn't going to this isn't going to tire because i'm comfortable with the up to language because obviously we can't appropriate you know we can't spend money that we don't have obviously so that seems like a reasonable but if is there any chance there's going to need to be any movement in here we're locking ourselves in dr king's no i'm dr armstrong's method i'm confident with him mr hanson i appreciate the spirit of the amendment i i just think that as i read these numbers that dr mccarthy provided for us i i think these are

[05:03:13] sorry about that it's been a long day um i think these are um targets and i i just think i would maybe be comfortable with the overall target of the 2.564 but i think the individual numbers within that maybe we come up with a way of you know as um presented by uh the department staff or something but i i just um i appreciate the spirit of it but i just um i think we're

[05:03:46] going to get there with the language as it's written but um i just i don't read this as an exact science of these numbers i think this is extrapolating out what the per pupil numbers are and i think again having the discretion given to the superintendent and to the president of the board obviously we all know what's anticipated here but i'm president mr sturdifant did we actually have a motion yes it's been made and seconded okay but the amendment there

[05:04:25] was no motion to that so so i suggested a friendly amendment and i now will if i may clarify a lot of mr hanson's current remark my friendly amendment i would amend my amendment to say up to 2.564065 for the collective amendments that i don't i don't need to have a specified subcategories it's just the goal is to not exceed our available funds madam president is there a second to that amendment i think i'm offering it as a friendly amendment bill and i think i hear you saying you can live

[05:05:02] with that but it happens yeah i mean we can't spend money we don't have anyway so yeah if we want to clarify that for the record i i everybody at the day is has taken oath office and we can't you know spend money we don't have so i i think simply saying that if we need to add language that we're just not going to not to exceed the available funds i mean i think that not to exceed

[05:05:37] available funds to me seems is a cap as a threshold um because you know there might be another bank statement with some more interest accrued between now and the end of the month or something so i just putting in the number of pennies uh just doesn't seem reasonable when i have full faith and confidence in everybody who has been appointed and served i'm okay with that amendment um alan if you would so it would be not to exceed available funds madam president Miss Holton. So I would submit that that partly serves the purpose, but does not adequately serve

[05:06:14] the purpose. If for some reason we turned up to have another three or four or five million dollar excess in the pot, say one of the schools withdraws their application before the money is obligated, then I would not be comfortable having, you know, $10 million go to ODU for this roll. Two and a half million dollars plus 700,000 seems in the ballpark. Doubling that amount if money became available would not be appropriate. So without further justification. So I think it's within the board's purview and responsibility and obligation to authorize appropriate amounts for

[05:06:51] the services being rendered. And for that reason, would argue for the 2.5. Okay, is there a second to miss holton's 2.5 x million dollars amendment so there are two two amendments on the floor miss holton suggested a specific dollar amount and then dr siebert suggested not to exceed available funds which accomplishes the same end so um is there a second to miss holton's specific

[05:07:23] amount is there a second to dr sieverts second okay so the motion is amended to include on the last line uh and the president of the board and superintendent of public instruction be authorized to negotiate and execute amendments to the lab school contracts to accomplish this not to exceed available funds is there any discussion on that item before we move to a vote we we're getting ready to yeah so i'll oppose that amendment for the reason i've just stated thank you so the

[05:08:02] amendment itself is just to add not to exceed um available funds and then we'll vote on the full language so i'm sorry i won't i have no i think that means i vote for the amendment but against the item against the motion if if that's your right because i think we need to have a cap on the amount going to ODU for the fiscal agent role and I'm not getting that so yeah okay thank you so this is to add not to exceed available funds on the end of the original motion and then we will vote on the full amended motion can we have discussion on something yes please

[05:08:40] proceed let's vote on the motion and get get the amendment taken care of Miss Ashton uh miss kilgore ah dr northern mr hansen mr rotherham dr sievert mr sturdifant miss holton aye and chair votes aye so now the motion is amended to include not to exceed available funds is there discussion that needs to be had on that particular motion as it's now been amended mr

[05:09:20] rotherham well i think it's time for jenna i do want to hear i'm very curious about miss holton's concern um uh because i it seems like we've now if the concern is that we're somehow like unilaterally going to give a bunch of money to odu i i want to make sure i just i don't i don't understand the concerns that's i'd like to hear on that and then we can talk about just more generally kind of where we are on you know on uh college partnership laboratory schools so i'm uh I'm happy to support an amount for ODU commensurate with the value that ODU, the significant value that ODU will be providing in this new role.

[05:09:59] I think it's this board's responsibility to determine that amount rather than to have that amount be determined simply by whatever's left over. And whatever's left over is not a rational basis connected to the amount of work. I mean, basically, if our goal is to make sure no money goes unspent, well, then that would make sense.

[05:10:20] But that's not our goal. Our goal as stewards of the taxpayers' money is to make sure the money is spent for appropriate purposes. And so up to an amount that's justified. I mean, we haven't actually had an application or a proposal from ODU. We haven't had anything. We've heard substantively what they're going to do, but we never had any submitted budget.

[05:10:39] But they're now getting, with $2.5 million, they would be getting half as much as each of the partners in startup funds. That seems like an appropriate amount compared to the work they're going to do. And I would just be supportive of that, but I'm not supportive of appropriating, authorizing an appropriation of an unknown amount.

[05:11:05] I guess I'm having a difficult time following the logic here. we just handed out a document that is clearly identifying what the unspent funds are clearly identifying what the projected numbers are for each of the five schools delegating the responsibility to the president of the board and the superintendent there is not a ouija board or something going on

[05:11:35] to play with the numbers we have been given a very high brick wall to clear with this june 30th date to try to negotiate contract after contract after contract to get us to where we need to be to protect the students and offer the students there is no fuzziness here and so i'm really having a hard time understanding what the concern or what the think that there's going to be some school

[05:12:08] duggery or something going on to achieve this goal i i don't understand i just did to put the unexpended funds, finite number, the schools are finite. We have targets that the staff has been trying to work as we have been meeting today to get towards delegating to our two elected and appointed leaders that have fiduciary responsibilities over the effective implementation and management of these taxpayer dollars. I'm just having a hard time understanding what the

[05:12:43] problem is i think nationally if um i mean we do know what odu is doing we have five fiscal agent and partner applications from them so it isn't as if they are playing hide the p here it's this is not i think to say that they have not applied is inaccurate well if i may respond i i think that it's important for us to remember that um because that's what you said they haven't applied they They haven't done this. They haven't done that. They absolutely have. Now you may respond.

[05:13:17] Thank you. My remark was simply they haven't submitted any proposed budget to us for this work. They absolutely have applied to be fiscal agents, but there were no budgets submitted with that. And I want to be very clear. I'm not suggesting skullduggery or anybody doing anything inappropriate from either the schools or the department.

[05:13:41] i i'm just looking for clarity transparency and responsible stewardship of our dollars and therefore i'm asking that we add in the number from the document that mr henson referenced that you know we didn't have this morning and now we do i mean this morning we were told there was 10.6 million dollars left and now we're told there's 13 million dollars left which is great it means there's well there's enough money now left to to uh appropriately compensate uh uh odu but that was not when i was asking this morning help me with the arithmetic there

[05:14:17] was no arithmetic now there's arithmetic and with this interest which we didn't know about this morning it the math works which is great and the math says that we've got up to two and a half millions and that's in a totally appropriate amount to expend for what odu is looking to do if for some reason it turned out there was other funds uh that uh became available and not by skullduggery but for whatever reason one of these applications fell apart for instance uh uh if there became other money available i would not be supportive of of having uh odu's funds doubled

[05:14:55] that for no reason so that i i and i won't keep repeating myself but i'm just thinking Clarity, transparency, and appropriate stewardship of the money. Mr. Hanson. Let's go back to our conversation this morning.

[05:15:11] The numbers have not changed, period. We were presented in May that there was $10.6 million left available for the operating per pupil amounts. There was also a separate category that was left available for the startup funding.

[05:15:29] Those collective numbers are exactly the numbers that have been handed out here. the numbers have not changed from this morning they have not changed from last month i even said this morning that there was about 2.45 million left just extrapolating out this so i said that publicly this morning this was actually validated with what the staff just passed out so it's not like the numbers have shifted or increased from four hours ago and i really i think it's very inappropriate to say that we found new money or anything of the like we did not this is the exact

[05:16:04] number that i actually posited this morning just extrapolating out the numbers so one last thing we approved these five motions this morning that each of these five schools now have to go back and submit these new and revised applications with old dominion university this to me seems like the logical time for these negotiations to continue and to have these things wrapped up by the end

[05:16:39] of the month we just approved these five amendments this morning unanimously so this is the process this is the time for things to get burned up and with the parameters that we set so again i really take issue with this representation if you found new money or that there was different amounts put on the table and that's not the case mr rotherham yes i'm okay i'm a little i mean one thing skullduggery i've always thought it'd be interesting to serve on a serve on a 19th century school board so this is exciting your skullduggery tossed around um i'm confused what we're even

[05:17:19] arguing about because we're not proposing i think the policy decision here is do we trust the state chief and the president of board to negotiate it's not that if there ends up being money left over for whatever reason it all goes to odu it's just do we trust them to negotiate an appropriate contract with odu in line with the services that odu is going to be providing to the commonwealth is that i think that's like that's that's the policy judgment before us and if we don't trust them we need to put some parameters on it if we do trust them we trust them negotiate that and for some reason there's additional money in this account for whatever reason that they're not it

[05:17:57] doesn't automatically move off to odu it doesn't change the integrity of their negotiation dr armstrong do i have that right that's and that would appear so okay then i mean then i think like just given we're not in an ideal situation here i mean but you back up that we had money to spend on lab schools 25 million of it was clawed back there's been a lot of politics odu has stepped on i mean this is not how anybody would have designed this in some ways we should be incredibly grateful to odu we've sort of

fallen backwards into clover which doesn't always happen in this line of work um and so i think given that like we we have to trust in the time that's left

[05:18:37] in the fiscal year that that the team here will negotiate an appropriate contract and i and i have that trust and again this is public it's not this will all be visible to the public this doesn't happen you know behind closed doors mr hansen i would call the question okay miss madame president 10 seconds. I just want to make clear that I'm not casting aspersions on anybody's good faith to the extent that Mr. Hanson took my remarks or anybody took my remarks to the contrary.

[05:19:09] That was absolutely not what I meant. I can't vote for this without the two and a half million dollar language added. That's it. Thank you. Ms. Ashton? Aye. Ms. Kilgore? Aye. Dr. Northern? Aye. mr hansen mr rotherham dr siebert mr sturdifant hi miss holton no and chair votes i okay um we have item q which is a written report um a discussion of current issues do you have anything

[05:19:46] before i have something um first and foremost i i want to mention that in 2024 summer is not a time where teachers kind of hang out. And I want to compliment and appreciate all of the teachers across the Commonwealth attending math symposiums, literacy symposiums, working on implementing standards, working collaboratively in partnership. We have over 20 schools next week going to Arizona to work on literacy implementation. We have teachers really honing in on the craft, really

[05:20:22] working hard. We also have the elementary school principals conference next week, the secondary school principals conference next week. So I just want to shout out the hardworking educators across the Commonwealth and the BDOE for supporting, collaborating, and working hard to make sure our teachers have extensive professional development opportunities. I also want to really thank all of the community. We have had over 20 public-facing listening sessions to date on the performance and support framework. Those have spread across the year. We have had dozens more opportunities to

[05:21:00] sit down and have small group conversations, feedback. Those range from parents to regional groups to business partners. We have a meeting next week with business partners. We've got dozens of letters that have given us feedback. We appreciate the feedback and the collaborative support of the Commonwealth to help us build the most transparent, clear, and supportive system to help identify our schools that need support and our students who are schools who are doing great work so we can learn and spread those practices. I also want to comment that we are part of a launch network. This is a national network with other state partners. Our launch

[05:21:39] team includes business partners, includes members from various secretariats, including Deputy Secretary Gullison that's really looking at how we revolutionize CTE and make sure our school divisions have options. All of that work is focused and driven to make sure we know how students are growing, how students are achieving, and how they're ready for the next steps. I am incredibly thankful that we have so many people working together with us to make sure that our systems really reflect the needs of our schools so that we can support them. Finally, we did have

[05:22:15] an event happened last week, and I want to make sure we had this in the newsletter, but that we also state this publicly for the record. As many of you know, earlier this year, the U.S. Department of Education published regulations redefining the scope of Title IX of the Education Amendments of 1972 regarding sex-based non-discrimination in education programs and activities receiving federal financial assistance. This final rule and accompanying regulations were scheduled to take

[05:22:48] effect on August 1st, 2024, but will not do so in Virginia until further legal resolution. On Monday, the U.S. District Court for the Eastern District of Kentucky granted a preliminary injunction or stay of the final rule and its accompanying regulations. This injunction enjoined and restrained the U.S. Department of Education from implementing, enacting, or enforcing these revisions to Title IX in several states, including Virginia, pending final resolution of the lawsuit.

[05:23:26] With the court's injunction on Monday, the Virginia Secretary of Education, Amy Gadara, shared a letter with educational leaders urging educational institutions, including public schools serving elementary and secondary school-age students, to immediately cease the implementation of the final rule and its accompanying regulations. I have communicated with school division superintendents to this effect as well in this week's superintendent newsletter. That's all I have. Okay, I'm going to be the most unpopular person in this room, I believe, as I'm getting

[05:24:02] ready to uh tell you guys that we are going to have a special call meeting on april 28th i mean april okay y'all are gonna do april august 28th um i don't believe it's gonna be long but uh we will be working to that end additionally um we do know that our dear friend mr sturdifant will not be joining us next month as his time will expire on the board and he um didn't want to stay with us

[05:24:41] i don't think unfortunately um and so i will just start uh with allowing the board to make some comments before i wrap it up if you'd like to if anyone would like to make some comments i'm sorry mr rotherham well to say it's been a pleasure when you first we didn't know each other you first came and um we sat right next to each other on the dais and then i'm not sure what we did wrong but uh

[05:25:17] our president decided something should come uh between us but it really has been a pleasure uh you and i don't agree on many things and i enjoy that about you but you are never disagreeable you bring a terrific spirit to things you're in public service for the right reasons and i for one i'm really going to miss having you on this board i wish you'd made a different decision and hope not to lose touch mr hansen just likewise dale just um i really appreciate the perspective and the leadership you brought to the board both with your wife's labor of love and the education system and

[05:25:52] yours um with your local school district and other leadership capacities also maybe more importantly as a father and grandfather but just i really appreciate the measure of the man that you are and really what you represent through your character and integrity thank you bill i want to echo bill and andy thank you for welcoming me last july and you've had i've learned a lot from you you have a really really unique perspective um you don't you cut to the chase you don't mince words

[05:26:26] and i respect that and i wish you the best and we're going to miss you thank you when i first joined the board um i was like oh and i sat beside you and i was told you know he was former know in law enforcement and i thought oh gosh he's gonna be hard to uh soften up here um but then you told me you hunted um and we had an instant connection because my father hunts my family's big into the land and the hunting and and um and we were able to connect on that and i think that's

[05:26:59] really been um we connected as people and you showed me that you know what you're you're an amazing uh leader on this board in terms of i'll echo my colleagues thoughts here about cutting to the chase um and drilling down into the essential point of anything that we're discussing on this board but also just being personable and caring about each of us as people checking in and just wanting to um talk um on a on a personal level and that's often overlooked i think in today's boards and politics and so on and so forth that there are good people that serve and you're one

[05:27:36] of those good people that serve so thank you thank you miss holton i have i said to dale last night that uh we are polar opposites on one very important factor and that is that uh you are a person of few words and i am a person of many words uh but in all seriousness i exactly but But otherwise, I just want I do want to say how much we value your few words when you are here, when you speak.

[05:28:12] It is always to the point and useful and helping us get to the right right outcomes for kids. And it's just been incredibly valuable to have your voice on the board. And I hope you don't be a stranger. I've loved, as Amber said, I've loved sharing our love of the outdoors and our love for Virginia school kids.

[05:28:31] And I hope you will stay in touch, both personally and professionally. Send us your advice and thoughts anytime, by written or public, oral comment. Dr. Siebert? I'm glad we got to begin the day with great music and end the day with terrific humor.

[05:28:50] Thank you very much. That was a good laugh. Thank you. Dale, this is just one piece of lifetime service. Your service to our country, your service to our commonwealth. I've enjoyed hearing about your remarkable children. And so you've served us with just really just thank you.

[05:29:07] I hope that as you have a little bit more time now, you will indeed get to engage in some more wildlife conservation. And I know you enjoy doing that. And so I wish you all the best and hope you will text us some more pictures of some of your great wildlife exploits, indeed.

[05:29:25] Dr. Coons. Mr. Sertifan, the first day I met you was my first day in Virginia. And you have always shown such kindness and collaborative thoughtfulness that I cannot thank you enough.

[05:29:40] It's going to be hard for me to come to the board in July because you've always been on the board for me. So I appreciate you very much. Michelle. Michelle. I can't believe this.

[05:29:56] This is not true. You have to come to July and August and every meeting. We're going to have to make a motion to include Dale for forever, a lifetime position. That being said, Dale, thank you so much for your service you have given us and in my short time just I think you represented your part of the state very well and have always been mindful for us to think about all of Virginia's scholars and for that for always being direct and short and calling the question we I appreciate you and look forward to seeing the next time.

[05:30:31] Thank you. Everything has a beginning. Just wait. So I will certainly miss you. But I think one thing that I do want to highlight is that you've had a lifetime of service in so many different capacities. And the people of the Commonwealth are not the only ones that are thankful for your service. The people of the United States of America, thank you for your, thank you for your service and thankful for your

[05:31:09] service in all of the ways. And I have a strong feeling that this is not the end of your public service, that you will continue to serve in whatever capacity you're called to next. And I appreciate you answering the call when Governor Yunkin called and asked you to join us. I'm thankful that he asked you to come and join us. And I'm thankful that you accepted. You have given all of us a different way of thinking about things and looking at how we get to the end of

[05:31:46] our discussions, certainly. And whoever comes next is going to have to fill those shoes. You're going to have to give them a little bit of a tutorial. But Dale, thank you. Thank you for joining us. Thank you for making a lasting impact on this board and everywhere else that you've served publicly. Thank you

there, Madam President. Now can I? Okay, thank you. Everything is the beginning and the end. This is the end of this portion. It's about doing the people's business.

[05:32:18] Politically, should never, politics should never get in the way of doing what's right for the children. That is the core. You may have, Andy, we don't get along with everything, definitely. We don't either, Ann. However, it's been fun. It's been fun. I like your passion, but I wish this board well as you move forward. I came, it was a different time. It was a four-member board, and I came at that fifth guy, and so we got things done.

[05:32:53] So I challenge this board to not be distracted. Focus on the children. The guy came in today. He talked about the number of, I think it was from Norfolk, the number of kids that have been dying and how the education is poor, you know, as far as kids having an opportunity.

[05:33:11] We must always give the children the opportunity to succeed, and hopefully the Commonwealth, we can work in those areas outside of the Board of Education where crime is high. It needs to be reduced so these kids have a childhood, which is being taken away from them early on.

[05:33:30] So, board members, thank you for putting up with me. I've enjoyed getting to know each and every one of you, and thank you all.

[05:33:44] Hanson's going to close us out today, not me. My voice won't be the last one I hear. Well, Dale, just again, thank you. And actually, I just wanted to take a moment and with all of the acrimony and disruption that has been about the lab school program over this last month or two, I just wanted to take a minute and step back and look at what has been accomplished this last two years.

[05:34:13] And I wish we could maybe and hopefully we're handy. We can get a map together of these projects across the Commonwealth. And it really is impressive in terms of its breadth and scope geographically and its programs and really its partnerships.

[05:34:37] And the one thing that I frankly was a little skeptical when I first joined the lab schools committee, thinking that there wasn't going to be a lot of innovation or moving the needle along the way, but I was every meeting of the committee and of the board when we were reviewing these applications coming in, the amount of collaboration going on at the local level, local superintendents, some of which were superintendents of the year.

[05:35:10] in the Commonwealth are community colleges, our four-year institutions from UVA to James Madison to Mary Washington to VCU to George Mason University to ODU, to the philanthropic partners, to the government partners, to the industry partners, community partners, stakeholders, thought leaders. These are public school-driven lab schools and run lab schools. And I have just

[05:35:46] been impressed with the innovation, the leadership that has, and just the dynamic nature of these projects and enthusiasm. I wish everybody could have sat through these, whether it's the teachers or the students that presented to us on many occasions, and, you know, that enthusiasm was infectious. And, you know, but also the scope of these projects from, you know, space to maritime

[05:36:17] to IT to addressing our big issues in the state of our healthcare needs, our apprenticeship and pathway needs to our teacher shortages and teacher quality issues. This is actually going to be an amazing mosaic of projects that are going to really I think help build up the commonwealth and it's going to be done community by community and region by region and literally student by student and I you know just

Dale your comment about you know my mantra most of my life has been I love what you said do what's right for the children mine has always been it's all about the

[05:36:55] kids and you know these um uh you know just challenges that we've had politically of I think people taking an eye off the ball of what this is all about um i think has been very unfortunate because there is going to be has been so much good going on i the man hours that have been put together in these projects is um just incredible and that's another thing that the the power behind this concept and behind this initiative um you know it's not a top-down thing it is a community

[05:37:30] bottom-up initiative that has just really inspired me and i just you know really i'm looking for us to get some great solutions out of this great progress out of this scalable solutions um you know really helping us focus on excellence and um you know learn from these communities of practice that we're going to have around the states i i just with all of the um of just unfortunate consternation and other issues going on these last couple weeks i just would really encourage

[05:38:05] everybody to take a step back and you know i had the blessing of hearing from alex haley the author of roots when i worked for lamar alexander when he was secretary of education 30 years ago and and alex haley had an old comment about find the good and praise it and i think that's what we hopefully can be about with this instead of finding the good and doing something to it And so I really am encouraged by what's out there and, you know, the level of expertise and passion that's going to really, I think, make an incredible difference in the years ahead.

[05:38:44] Ms. Holton. Very briefly, I just want to thank both Mr. Hanson and Mr. Rotherham, but also Joan Wodiska, Pam Moran, John Bailey, all of whom have served as volunteers on our lab school committee.

[05:39:02] And the three of them and the two of you I know have put in extraordinary hours along with the staff and want to thank you for your efforts. And with that, I would like to entertain a motion to adjourn. And we are adjourned.

